



CHAPTER ccliii.

An Act to authorise the Swansea Harbour Trustees to make a new dock enlarge and extend the half-tide basin of the South Dock and construct new railways to extend the limits of the harbour and for other purposes.

A.D. 1901.

[17th August 1901.]

WHEREAS it is expedient that the Swansea Harbour Trustees (in this Act called "the Trustees") should be authorised to make the new dock enlarge and extend the half-tide basin of the South Dock construct the new railways and other works and to exercise the powers in this Act mentioned :

And whereas the construction of the said new dock and works is of public importance and will be a great benefit to the borough of Swansea and it is expedient that the mayor aldermen and burgesses of the borough of Swansea in this Act called "the corporation" be authorised to subscribe towards the cost thereof and to guarantee interest on the moneys to be borrowed by the Trustees :

And whereas the ratepayers of the borough of Swansea have by resolution passed at a meeting specially convened for the purpose approved of such subscription and guarantee by the corporation :

And whereas it is expedient to confirm and give effect to a lease of certain land in the town of Swansea granted to the Trustees by the corporation :

And whereas it is expedient in the interests of the trade of the port and harbour of Swansea to grant further powers to the Trustees as regards the erection of warehouses stores and other buildings and the leasing of lands and buildings :

And whereas it is expedient in the same interests to empower the Trustees to allocate to the use of any particular trade or of any company person or vessels any berths wharves warehouses or other accommodation :

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And whereas it is expedient to empower the Trustees to levy tonnage rates on steam vessels on a tonnage not being less than fifty per centum of the gross register tonnage of such steam vessels :

And whereas it is expedient to repeal or amend section 127 of the Swansea Harbour Act 1854 and to empower the Trustees to demand and take additional rates on goods in vessels entering or using any part of Swansea Harbour south of the New Cut Bridge :

And whereas it is expedient to empower the Trustees to demand and take tolls rates and charges on passengers landing from or embarking on vessels at the piers wharves or quays of the Trustees and on passengers' luggage :

And whereas it is expedient owing to change of circumstances to alter repeal or amend the sections of the Swansea Harbour Act 1854 in this Act specified :

And whereas it is expedient to extend the limits of the harbour of Swansea :

And whereas it is expedient to authorise the Trustees to borrow further moneys for the purposes aforesaid and for other purposes to which capital is properly applicable :

And whereas plans and sections of the new dock the enlargement and extension of the half-tide basin of the South Dock and the other works by this Act authorised and a book of reference to the plans containing the names of the owners or reputed owners lessees or reputed lessees and occupiers of the lands required or which may be taken for the purposes of this Act have been deposited with the clerk of the peace for the county of Glamorgan and those plans sections and book of reference are in this Act referred to as the deposited plans sections and book of reference :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited for all purposes as the Swansea Harbour Act 1901.

Interpretation.

2. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless

there be something in the subject or context repugnant to such construction : A.D. 1901.

The expression "the Act of 1854" shall mean the Swansea Harbour Act 1854 ;

The expression "the Act of 1857" shall mean the Swansea Harbour Act 1857 ;

The expression "the Act of 1874" shall mean the Swansea Harbour Act 1874 ;

The expression "the Act of 1886" shall mean the Swansea Harbour Act 1886 ;

The expression "the Act of 1894" shall mean the Swansea Harbour Act 1894 ;

The expression "the Act of 1895" shall mean the Swansea Harbour Act 1895 ;

The expression "the Act of 1896" shall mean the Swansea Harbour Act 1896 ;

The expression "Swansea Harbour Fund" shall mean the Swansea Harbour Fund as provided by the Act of 1854 ;

The expression "Swansea Harbour Stock" shall mean Swansea Harbour Stock as authorised to be created and issued under and in accordance with the provisions of the Act of 1886 ;

The expression "the dock" shall mean the dock and lock by this Act authorised ;

The expression "the enlargement" shall mean the enlargement and extension of the half-tide basin of the South Dock by this Act authorised.

3. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands under fifty pounds.

4. The Lands Clauses Acts the Railways Clauses Consolidation Act 1845 Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 and the Harbours Docks and Piers Clauses Act 1847 (except sections 16 to 19 which shall not be in force except and until the Board of Trade in writing so require) and the provisions of the Commissioners' Clauses Act 1847 with respect to the mortgages to be executed by the Commissioners except sections 82, 84 and 85 are (except where expressly varied by this Act) incorporated with and form part of this Act And the expression "the railway" in the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of Incorporation of Acts.

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Power to
make works.

5. Subject to the provisions in this Act the Trustees may do the following things and may make construct and maintain in the line and according to the levels shown on the deposited plans and sections the new dock the enlargement and extension of the half-tide basin of the South Dock the removal of the outfall sewer the new sewer the new railways and other works hereinafter described and may also construct the substituted railway hereinafter described and which said railway is referred to in the agreements between the Trustees and the Great Western Railway Company and the Rhondda and Swansea Bay Railway Company and which agreements are set forth in the Seventh and Eighth Schedules to this Act together with all cuts locks basins graving docks entrances gates approaches quays piers jetties shipping places staiths stairs stages wharves wharf walls culverts embankments tramways railways sheds warehouses cranes drops dolphins machinery roads approaches and other buildings and conveniences connected with or necessary for the said works or any of them and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for all or any of such purposes.

The dock and other works in connection therewith hereinbefore referred to and authorised by this Act are—

- (1) A dock and lock on the foreshore and bed of Swansea Bay bounded on the north by the old Eastern Pier the Port Tennant Copper Works the foreshore protection works of the Trustees and the seashore to the south-east of the arsenic works on the east by the seashore to the south of the English Crown Spelter Works on the south by Swansea Bay and on the west by the East Pier and the entrance channel of Swansea Harbour:
- (2) An enlargement and extension of the half-tide basin of the South Dock in an easterly direction which enlargement and extension will be situate on lands bounded on the northern side by lands of the Trustees on the eastern side by the said entrance channel on the southern side by the new entrance lock to the South Dock in course of construction and on the western side by the said half-tide basin:
- (3) An extension of the west pier for a distance of 800 feet or thereabouts in a seaward direction:

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- (4) The removal of so much of the outfall sewer belonging to the corporation as lies between the manhole on the Port Tennant Road situate 32 yards or thereabouts from the north-western corner of the Burrows Inn and the termination of the said sewer at the Three Brothers Rocks on the foreshore in Swansea Bay and of so much of the said sewer as lies between the said manhole and the manhole on the Port Tennant Road situate 10 yards or thereabouts south-west of the western corner of the Mile End public-house :
- (5) A new sewer commencing at the manhole on the Port Tennant Road situate 32 yards or thereabouts from the north-western corner of the Burrows Inn and terminating at a point measured 580 yards or thereabouts south of the south-eastern corner of the English Crown Spelter Works :
- (6) The enlargement alteration deepening and improvement of the entrance channel of Swansea Harbour :

The railways authorised by this Act are—

- (1) A railway being the substituted railway hereinbefore referred to 1 furlong 6·20 chains in length commencing by a junction with the Great Western Railway at a point thereon 109 yards or thereabouts eastward of the level crossing on the said railway which adjoins the eastern boundary wall of the Swansea Wagon Works and terminating at a point 10½ yards or thereabouts measured in a southerly direction from the south-eastern corner of the repairing shops of the said Swansea Wagon Works :
- (2) A railway hereinafter called Railway (No. 3) 5 furlongs 7·80 chains in length commencing by a junction with the substituted railway at its termination and terminating by a junction with the railway of the Trustees at a point thereon 60 yards or thereabouts westward of the face of the western abutment of the bridge which carries the said railway of the Trustees over the Port Tennant Road :
- (3) A railway hereinafter called Railway (No. 4) 1 mile 4 furlongs 0·20 chain in length commencing by a junction with Railway No. 3 at a point thereon 100 yards or thereabouts measured in a westerly direction from the termination of the substituted railway and terminating by a junction with the low-level railway of the Trustees at a point thereon six yards or thereabouts eastward of the north-eastern corner of the boundary wall of the Prince of Wales Dry Dock.

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Power to
cross and
divert sewers
&c.

6. The Trustees may within the limits of deviation shown on the deposited plans divert alter stop up remove or otherwise interfere with either temporarily or permanently any sewers drains gas and water mains and pipes telegraphic telephonic electric and other wires pipes and apparatus and other works so far as may be necessary or desirable for the purposes of the works by this Act authorised the Trustees providing or causing to be provided a proper substitute before interrupting the flow of gas water or sewage in any of the premises And in the exercise of any of such powers the Trustees shall do as little damage as may be and shall make full compensation to all parties entitled thereto for any damage by them sustained by reason of the exercise of such powers the amount thereof to be determined in the manner provided by the Lands Clauses Acts for settling cases of disputed compensation Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section Provided also that the Trustees shall not remove alter or in any way interfere with any telegraphic telephonic or electric cables wires tubes or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
take and
divert water.

7. The Trustees may divert water by pumping or otherwise from Swansea Harbour the River Tawe and Swansea Bay for the purpose of supplying the new dock and works with water.

Power to
deviate.

8. Subject to the provisions of this Act the Trustees may within the limits of deviation defined on the deposited plans deviate from the line or situation of the works authorised by this Act as marked on the deposited plans but so that no part of such works shall be constructed beyond those limits and may also deviate from the levels shown on the deposited sections to an extent not exceeding seven feet Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Trustees
may hold
certain lands
already ac-
quired.

9. The Trustees may hold use and appropriate for the purposes of their undertaking certain lands in the parish of Swansea situate near the western end of the South Dock which have been already acquired by them but nothing in this Act shall exempt the Trustees from any indictment action or other proceeding for nuisance in the

event of any nuisance being caused or permitted by them upon any land so acquired. A.D. 1901.

10. And whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other properties shown on the deposited plans may be sufficient for the purposes of the same, and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the properties described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Trustees the portions only of the premises so required without the Trustees being obliged or compellable to purchase the whole or any greater portion thereof the Trustees paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may be required to sell parts only of certain property.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Trustees any easement right or privilege (not being an easement right or privilege of water in which other than parties to the agreement have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to take easements &c. by agreement.

12. The following provisions for the protection and benefit of the corporation shall except in so far as may be otherwise agreed in writing between the Trustees and the corporation apply and have effect (that is to say) :—

For protection of Swansea Corporation.

- (1) Prior to the removal of the outfall sewer and to the construction of the new sewer authorised by this Act being the Works Nos. (4) and (5) referred to in the section of this Act whereof the marginal note is "Power to make works" and prior to the commencement of any works involving the diversion alteration stopping up removal or interference with

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any sewers drains water-mains or pipes electric or other wires pipes or apparatus or other works belonging to or under the control of the corporation the Trustees shall give notice thereof to the borough engineer of Swansea (in this section referred to as "the borough engineer") and such notice shall be accompanied by plans sections and specifications of the proposed works and the Trustees shall give to the borough engineer such further information in regard to the matters aforesaid as he may reasonably require :

(2) No works referred to in subsection (1) of this section shall be executed by the Trustees except in accordance with plans sections and specifications and in a manner reasonably approved in writing by the borough engineer and all such works shall be executed in all things at the expense of the Trustees to the reasonable satisfaction of the borough engineer and the Trustees shall also restore and make good to the like satisfaction any sewers drains mains pipes wires and apparatus and other works belonging to or under the control of the corporation and any roads or other property vested in them which may be disturbed or interfered with by or owing to the operations of the Trustees under this Act Provided always that the Trustees shall not be required to construct the new sewer of a larger discharging power than the existing sewer :

(3) The existing outfall sewer of the corporation shall not be removed or interfered with until the new sewer shall have been constructed by the Trustees in accordance with the provisions of this section and such new sewer when constructed shall vest in the corporation and be in all respects subject to the provisions of all Acts of Parliament relating to the sewers of the corporation :

(4) Any question or difference which may arise between the corporation and the Trustees under the provisions of this section shall be determined by arbitration the arbitrator to be agreed on between the parties or in default of agreement to be appointed by the Local Government Board.

For protec-
tion of Great
Western
Railway
Company.

13. The following provisions for the protection of the Great Western Railway Company (in this section called "the Great Western Company") shall unless otherwise agreed between the Trustees and the Great Western Company have effect (that is to say) :—

(1) The Trustees shall not under the powers of this Act enter upon take use or interfere with any portion of the railways or

property of the Great Western Company except that if the Great Western Company do not elect themselves to construct the substituted railway referred to in the agreement set forth in the Seventh Schedule to this Act where situate on lands of the Great Western Company the Trustees may subject to the terms of that agreement enter upon the said property for the purpose of constructing the said substituted railway :

The Trustees shall pay to the Great Western Company the sum of one hundred pounds by way of purchase or compensation for the easement to be acquired under the provisions of this Act for the construction of the substituted railway :

- (2) The Railway No. 3 by this Act authorised between the Tennant Canal and its termination shall not without the consent of the Great Western Company be deviated from the centre line shown on the deposited plans :
- (3) The Railway No. 3 by this Act authorised where it crosses the railways leading to the tips leased to the Great Western Company at the Prince of Wales Dock (hereinafter called "the tip railways") shall be constructed according to plans sections and specifications to be submitted to and approved by the engineer of the Great Western Company prior to the commencement of the work and to his reasonable satisfaction Provided that if such engineer fail to approve such plans sections and specifications for the period of one month after the same shall have been submitted to him then the said Railway No. 3 shall be constructed according to plans sections and specifications to be approved by an arbitrator to be appointed as hereinafter provided :
- (4) The Trustees shall not in the construction of the Railway No. 3 by this Act authorised unnecessarily obstruct or interfere with the free uninterrupted and safe use of the tip railways or the traffic thereon respectively :
- (5) The Trustees shall bear and on demand pay to the Great Western Company the expense of the employment by that company during the construction of the Railway No. 3 by this Act authorised of a sufficient number of watchmen and signalmen to be appointed by that company for watching and signalling the tip railways with reference to and during the execution of such work and for preventing as far as may be all interference obstruction danger or accident :
- (6) If in or by reason of the construction of the Railway No. 3 by this Act authorised or the failure of any work in connection therewith the tip railways or either of them shall be injured or

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damaged such injury or damage shall be forthwith made good by the Trustees at their expense or in the event of their failing so to do then the Great Western Company may make good the same and recover the expense thereof against the trustees And if any interruption shall be occasioned to the traffic of the Great Western Company—

(A) During and by reason of the construction of the said Railway No. 3 by this Act authorised; or

(B) By reason of the failure or want of proper maintenance and repair of any works in connection with the said Railway No. 3 by this Act authorised or any such injury or damage as aforesaid; or

(C) By reason of any breach of any of the provisions of subsection (7) of this section with respect to the working of the traffic of the said Railway No. 3 by this Act authorised;

the Trustees shall pay to that company all costs and expenses to which that company may be put as well as compensation for the loss and inconvenience sustained by them by reason of any such interruption:

(7) The Railway No. 3 by this Act authorised shall be so constructed and shall be so maintained and the traffic shall be so worked as not to prevent or unnecessarily interfere with the user by the Great Western Company of the tip railways or either of them:

(8) If by reason or in consequence of the construction or use of the Railway No. 3 by this Act authorised any additional signals or other works in connection with the said tip railways or either of them or the junctions thereof with the railways of the Great Western Company shall be rendered necessary the expense thereof (if any) shall be borne and paid by the Trustees to the Great Western Company:

(9) If any dispute shall arise between the Great Western Company and the Trustees respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the Board of Trade.

For protection of Rhondda and Swansea Bay Railway Company.

14. The following provisions for the protection of the Rhondda and Swansea Bay Railway Company (in this section called "the Rhondda Company") shall unless otherwise agreed between the Trustees and the Rhondda Company have effect (that is to say):—

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(1) The Trustees shall not under the powers of this Act enter upon take use or interfere with any portion of the railways or property of the Rhondda Company except that if the Rhondda Company do not elect themselves to construct the substituted railway referred to in the agreement set forth in the Eighth Schedule to this Act where situate on lands of the Rhondda Company the Trustees may subject to the terms of that agreement enter upon the said property for the purpose of constructing the said substituted railway :

(2) A toll of five thirty-seconds of a penny per ton shall be payable to the Rhondda Company on all traffic (other than traffic which shall be liable to the toll made payable by clause 5 of the agreement set forth in the Eighth Schedule to this Act and other than the traffic of the Rhondda Company which is not to be subject to the last-mentioned toll or to the toll in this section mentioned) conveyed over the junctions of the substituted railway with the Rhondda Railway or either of such junctions whether by the Trustees or by any other body company or persons and in calculating the maximum sums provided for by clause 5 of the aforesaid agreement the toll payable under this section shall not be taken into account and only the toll payable under the said clause 5 on traffic conveyed by the Great Western Railway Company or the Trustees over the substituted railway from or to the Great Western Railway to or from the new dock and works constructed or lands acquired under the provisions of this Act or the said agreement shall be taken into account :

(3) The Railway No. 3 by this Act authorised between the Tennant Canal and its termination shall not without the consent of the Rhondda Company be deviated from the centre line shown on the deposited plans :

(4) The Railway No. 3 by this Act authorised where it crosses the railways leading to the tips leased to the Rhondda Company at the Prince of Wales Dock (hereinafter called "the tip railways") shall be constructed according to plans sections and specifications to be submitted to and approved by the engineer of the Rhondda Company prior to the commencement of the work and to his reasonable satisfaction Provided that if such engineer fail to approve such plans sections and specifications for the period of one month after the same shall have been submitted to him then the said Railway No. 3 shall be constructed according to plans sections and specifications to

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be approved by an arbitrator to be appointed as hereinafter provided :

(5) The Trustees shall not in the construction of the Railway No. 3 by this Act authorised unnecessarily obstruct or interfere with the free uninterrupted and safe use of the tip railways or the traffic thereon respectively :

(6) The Trustees shall bear and on demand pay to the Rhondda Company the expense of the employment by that company during the construction of the Railway No. 3 by this Act authorised of a sufficient number of watchmen and signalmen to be appointed by that company for watching and signalling the tip railways with reference to and during the execution of such work and for preventing as far as may be all interference obstruction danger or accident :

(7) If in or by reason of the construction of the Railway No. 3 by this Act authorised or the failure of any work in connection therewith the tip railways or either of them shall be injured or damaged such injury or damage shall be forthwith made good by the Trustees at their expense or in the event of their failing so to do then the Rhondda Company may make good the same and recover the expense thereof against the Trustees And if any interruption shall be occasioned to the traffic of the Rhondda Company—

(A) During and by reason of the construction of the said Railway No. 3 by this Act authorised ; or

(B) By reason of the failure or want of proper maintenance and repair of any works in connection with the said Railway No. 3 by this Act authorised or any such injury or damage as aforesaid ; or

(C) By reason of any breach of any of the provisions of subsection 7 of this section with respect to the working of the traffic of the said Railway No. 3 by this Act authorised ;

the Trustees shall pay to that company all costs and expenses to which that company may be put as well as compensation for the loss and inconvenience sustained by them by reason of any such interruption :

(8) The Railway No. 3 by this Act authorised shall be so constructed and shall be so maintained and the traffic shall be so worked as not to prevent or unnecessarily interfere with the user by the Rhondda Company of the tip railways or either of them :

(9) If by reason or in consequence of the construction or user of the Railway No. 3 by this Act authorised any additional signals or other works in connection with the said tip railways or either of them or the junctions thereof with the railways of the Rhondda Company shall be rendered necessary the expense thereof (if any) shall be borne and paid by the Trustees to the Rhondda Company :

(10) If any dispute shall arise between the Rhondda Company and the Trustees respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the Board of Trade.

15.—(1) The Trustees shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district in any parish ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Trustees—

Restrictions
on displacing
persons of
labouring
class.

(A) Shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

A.D. 1901. — Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Trustees acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Trustees may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Trustees for the purposes of any scheme under this section in the same manner in all respects as if the Trustees were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Trustees may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Trustees in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the

scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment:

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(9) The Trustees shall pay to the said Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(10) Any houses purchased or acquired by the Trustees for or in connection with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Local Government Board under the powers of any previous Act relating to the company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Local Government Board they might have been sufficient to accommodate.

(11) For the purpose of this section—

The expression "house" means any house or part of a house occupied as a separate dwelling; and

The expression "labouring class" means and includes mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working

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at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Limiting
period for
purchasing
lands.

16. Subject to the provisions of this Act the powers of the Trustees for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Trustees not
bound to
sell lands
acquired by
agreement.

17. Notwithstanding anything in the Lands Clauses Acts to the contrary the Trustees shall not be bound to sell or dispose of any lands purchased or acquired by them by agreement under or by virtue of this Act and sections 127 to 131 both inclusive of the Lands Clauses Consolidation Act 1845 shall not apply to any such lands.

Period for
completion
of works.

18. If the works by this Act authorised are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Trustees for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

New works
to be within
harbour.

19. All the works made and lands acquired by the Trustees under this Act shall be deemed within the limits of and part of Swansea Harbour as extended by this Act and the dock the enlargement and works described in the fifth section of this Act shall for the purposes of rates and charges and for all other purposes be deemed to be part of the works of the Trustees and shall be comprised in their harbour undertaking.

Harbour and
dock rates
on shipping
and goods.

20. The Trustees may demand and take in respect of vessels entering or using and in respect of goods shipped or unshipped received or delivered into or from vessels entering or using the dock or the enlargement by this Act authorised the several harbour and dock rates which by the Act of 1874 the Trustees may demand and take in respect of the docks and works by that Act authorised.

Further rates
on vessels
remaining
in dock more
than twenty-
one days.

21. If any vessel entering or using the dock or the enlargement whether it has previously paid or been liable to any such rates or not remains in the dock or the enlargement for any time longer in the whole than twenty-one days the Trustees may demand and take in addition to the other harbour rates or dock rates on shipping for every vessel so remaining a further dock rate not exceeding for every ton measurement of the vessel twopence a ton for every week the vessel so remains beyond three weeks and so in proportion for any period less than a week during which the vessel so remains in the dock or the enlargement.

22. The Trustees may at any time after the passing of this Act demand and take for the use of their wharves warehouses stores sheds yards lands cranes weighing and measuring machines of and from the owner or person having the charge of any goods articles or things loaded or discharged at or deposited on or in such wharves warehouses stores or sheds or loaded or unloaded weighed or measured by means of such cranes weighing and measuring machines such reasonable rates and charges as they think fit.

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Wharfage
rates &c.

23. The Trustees may at any time after the passing of this Act demand and take for the use of any of their staiths drops and other shipping appliances works dry docks and conveniences such reasonable rates and charges as they think fit.

Rates for
staiths &c.

24. The Trustees may at any time after the passing of this Act demand and take on passengers landing from or embarking on vessels at the piers wharves or quays of the Trustees and on passengers' luggage such reasonable tolls rates and charges as they think fit not exceeding fourpence for each passenger and twopence per hundredweight for luggage. Provided that the charges for bicycles and tricycles so landed or embarked shall not exceed one penny for bicycles and twopence for tricycles when such bicycles and tricycles are accompanied by their owners.

Tolls and
rates for
passengers
landing or
embarking

25. The Trustees may from time to time demand and take for the user of the railways by this Act authorised tolls not exceeding the tolls which they are by the Act of 1857 authorised to take in respect of the Swansea Harbour Railway by that Act authorised and notwithstanding anything in the Act of 1857 the Act of 1874 the Act of 1895 and the Act of 1896 the Trustees may at any time after the passing of this Act demand and take in respect of goods animals and passengers conveyed on any of their railways in carriages belonging to the Trustees or hauled by an engine belonging to the Trustees such reasonable rates and charges as they think fit.

Tolls rates
and charges
on railways.

26. So soon as the dock and the enlargement or either of those works respectively are or is certified by a certificate under the hand of the chairman of the quarter sessions of the county of Glamorgan in the manner provided by the Harbours Docks and Piers Clauses Act 1847 to be fit for the reception of and loading or unloading of vessels the Trustees may from time to time demand and take the several rates and charges by this Act authorised and applicable to such dock or enlargement respectively although such dock or enlargement (as the case may be) be not then wholly completed.

Rates for
dock and
enlargement
payable
though same
not wholly
completed.

A.D. 1901.

Rates on
goods south
of New
Cut Bridge.

27. Notwithstanding anything contained in section 127 of the Act of 1854 the marginal note of which is "Rates on goods outside float &c." the Trustees may at any time after the passing of this Act demand and take in respect of all goods (including British copper ores) shipped or unshipped received or delivered into or from vessels entering or using the harbour south of the New Cut Bridge the several harbour and dock rates which by the Act of 1874 the Trustees may demand and take in respect of the docks and works by that Act authorised.

Provision
as to net
register ton-
nage of steam
vessels.

28.—(1) In the case of steam vessels other than steam tugs the net register tonnage upon which rates are leviable shall in no case be deemed for the purpose of rating to be less than fifty per centum of the gross register tonnage of such steam vessels.

(2) In the case of steam tugs the net register tonnage upon which rates are leviable shall in no case be deemed for the purposes of rating to be less than eighteen per centum of the gross register tonnage of such tugs.

Half rates on
vessels enter-
ing harbour
and not dis-
charging
cargo.

29. The Trustees shall not demand or take in respect of any vessel entering the harbour and not entering or using any dock and not loading or unloading therein any part of the cargo thereof or unloading the same only for the purpose of repairs to such vessel and not remaining in the harbour more than four tides more than one half of the harbour rates on shipping authorised by the Act of 1874.

Repeal of
certain sec-
tions of Act
of 1854.

30. The following sections or portion of section of the Act of 1854 are hereby repealed:—

No. of Section.	Marginal Note.	Portion Repealed.
130	Providing for a rateable variation of certain rates affecting the copper trade and coal trade.	The whole of the section.
133	Yachts pleasure boats &c. exempt from rates and duties.	The whole of the section.
134	Further tonnage rates payable by vessels remaining in float or half-tide basin beyond 21 days.	The proviso to the section except as regards the Beaufort Dock.

Power to set
apart and
appropriate
berths &c.

31. The Trustees may as they think fit set apart and appropriate to the exclusive use of any particular trade or vessels any berths wharves or other accommodation and in addition to the rates they are authorised to demand and take may for such exclusive appropriation or use demand and take such reasonable charges and make such regulations as they think fit No person

or vessel shall make use of any berth wharf warehouse or other accommodation so set apart or appropriated without the consent of the harbour master and any person knowingly offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding ten pounds for every day during any part of which such offence shall continue after notice not to use such berth wharf or other accommodation and the trustees may order such person and any such vessel to be removed and the provisions of section 58 of the Harbours Docks and Piers Clauses Act 1847 shall extend and apply mutatis mutandis to and in relation to any such vessel.

A.D. 1901.

32. Except as is by this Act otherwise expressly provided no owner of any mines or minerals his workmen or servants or any other person shall on any account whatever open dig or carry on any work for the getting of clay coal limestone ironstone or other ore or mineral in or under any lands from time to time vested in the Trustees by or under this Act or any lands within the distance of twenty-four yards from any of the lands so vested in the Trustees without in every case the previous consent in writing of the Trustees.

No works for getting minerals to be carried under lands of Trustees without their consent.

33. When and so often as any such owner or person is desirous of working any such clay coal limestone ironstone or other ore or mineral in or under any such lands he shall at least three months before he begins to work the same give notice in writing under his hand and specifying his place of abode of his intention to the Trustees and after the receipt of such notice the Trustees may inspect such clay coal limestone ironstone or other ore or mineral so far as is practicable in order to determine what clay ores or minerals may be come at and actually gotten without prejudice or damage to any of the works of the Trustees.

Notice to be given to Trustees by owners of minerals under works before beginning to work same.

34. If the Trustees do not within thirty days after the receipt of such notice give notice in writing to such owner or person that the Trustees refuse to permit the working of clay ore or minerals then the owner thereof may work and get the same as if this Act were not passed.

If Trustees do not within thirty days after notice refuse permission owner may work minerals.

35. If within such thirty days the Trustees give notice in writing to such owner or person such notice to be left at or sent by post in a registered letter to the specified place of abode of such owner or person that they refuse to permit him to work any such clay ores or minerals which but for such refusal he might come at and actually get or in any manner prevent him from getting the

Trustees refusing permission to work or preventing getting minerals to make compensation.

A.D. 1901. same then the Trustees shall within three months after such notice of refusal or preventing pay to the owners or workers of such clay ores or minerals such price for the same in proportion to their several interests as the next adjoining clay ores or minerals of equal quality are really and bonâ fide sold for or valued at such compensation to be ascertained and recovered as compensation under the Lands Clauses Consolidation Act 1845.

Trustees
may erect
warehouses
&c. and lease
same.

36. The Trustees may upon any of their lands construct such warehouses stores sheds and other buildings as may be necessary for the accommodation of goods or animals shipped or unshipped received or delivered within the harbour and may apply to the purposes of such construction any of the moneys which they have power to borrow or raise under the provisions of any Act relating to the Trustees. The Trustees may notwithstanding anything in the Harbours Docks and Piers Clauses Act 1847 lease such warehouses stores sheds or other buildings for such terms of years at such rents and upon such conditions as shall be agreed upon between the Trustees and the person or persons corporations or companies taking such leases.

Trustees
may grant
leases of
lands for
certain pur-
poses.

37. Notwithstanding anything in the Harbours Docks and Piers Clauses Act 1847 the Trustees from time to time may grant leases for any terms not exceeding sixty years of any of the lands for the time being belonging to the Trustees to any person or persons corporations or companies who shall covenant to improve such lands by laying out money in the erection or construction of warehouses stores dry docks furnaces works manufactories or other buildings or accommodation thereon and they may also grant to such lessees the use during their respective leases of such waterway quay-room and wharfage-room and other easements as may be requisite or convenient for the purpose of the trade or business to be carried on in or at the warehouses stores dry docks furnaces works manufactories or other buildings or accommodation to be erected or constructed by such lessees and the Trustees may accept surrenders of such leases on such conditions as they think fit.

Trustees
may purchase
or lease lands
of corpora-
tion.

38. The Trustees may purchase by agreement or take on lease any quays wharves lands or buildings now belonging to the corporation and which may not be required by them or may exchange therefor any land of the Trustees.

Extending
limits of
harbour.

39. The limits of the harbour of Swansea are hereby extended and shall include—

All that area within a line commencing at a point on the shore at high-water mark of ordinary spring tides eight hundred

and eleven yards or thereabouts in a direction $56\frac{1}{2}$ degrees or thereabouts east of south from the south-western corner of the Burrows Chemical Works thence proceeding along an imaginary line in a direction $22\frac{1}{2}$ degrees or thereabouts west of south for a distance of three thousand nine hundred and fifty-two yards or thereabouts thence along an imaginary line in a direction 63 degrees or thereabouts west of south for a distance of one thousand nine hundred and twenty-five yards or thereabouts thence along an imaginary line in a direction $86\frac{1}{2}$ degrees or thereabouts west of north for a distance of five thousand eight hundred and fifty-two yards or thereabouts to a point on the shore at high-water mark of ordinary spring tides (the said several bearings being true and not magnetic bearings) and thence in a northerly north-easterly and easterly direction along high-water mark of ordinary spring tides to the said point eight hundred and eleven yards or thereabouts from the south-west corner of the said chemical works :

A.D. 1901.

And the Trustees shall be the harbour authority for conservancy purposes of the harbour as so extended.

40. For the protection of the Neath Harbour Commissioners the following provision shall have effect (that is to say) :—

For protection of Neath Harbour Commissioners.

No vessel bound to or from the port of Neath and not bound from or to the port of Swansea which shall pass through or anchor within the extended limits described in the section of this Act the marginal note of which is " Extending limits of harbour " shall be liable to pay harbour rates or dues to the Trustees.

41. Subject to the provisions of this Act the Trustees may in addition to any other sums which they are now authorised to raise from time to time borrow upon mortgage of the Swansea Harbour Fund any further sum or sums not exceeding in the whole two million pounds and in the event of any sum or sums so borrowed being repaid may again borrow the same and so from time to time and the provisions of Part III. of the Act of 1886 shall apply to any mortgages granted under this Act as if the provisions as to mortgages contained in that Part of that Act had been re-enacted in this Act with reference to the moneys to be borrowed under this Act.

Power to borrow on mortgage.

42. For the purpose of raising all or any of the moneys authorised to be borrowed under this Act the Trustees may from time to time create and issue Swansea Harbour Stock under and in accordance with the provisions of Part IV. of the Act of 1886

Power to create Swansea Harbour Stock.

A.D. 1901. — as if those provisions had been re-enacted in this Act with reference to Swansea Harbour Stock to be created and issued under this Act. Provided that all stock created under the powers of this Act and the interest thereon shall rank equally without any priority or preference with any stock which may be created under the powers of the Act of 1894 the Act of 1895 or the Act of 1896 and the interest thereon. Provided also that notwithstanding anything contained in the Act of 1886 the Trustees shall not be required to set aside or appropriate any money for the purposes of a sinking fund until the expiration of the period of ten years from the passing of this Act.

Priority of mortgages granted under previous Acts.

43. All mortgages granted or which may hereafter be granted by the Trustees in pursuance of the powers of any Act of Parliament passed before the passing of this Act and the interest thereon shall have priority over any mortgages or stock granted or created by virtue of this Act and the interest thereon. Provided that the amount of principal money which shall have priority under this section shall not at any time exceed four hundred thousand pounds.

All mortgages granted by Trustees after passing of Act to rank equally.

44. All mortgages to be granted by the Trustees in pursuance of the powers of this Act and (except so far as they shall have priority under the section of this Act the marginal note of which is "Priority of mortgages granted under previous Acts") all mortgages which may hereafter be granted by the Trustees in pursuance of the powers of any previous Act of Parliament shall rank equally without any preference or priority among themselves and with the interest thereon shall rank equally with any stock which may be created under the powers of this Act and the interest thereon.

Priority of stock created under Act of 1886.

45. All stock whether created or to be created under the powers of the Act of 1886 and the interest thereon shall have priority over any stock or mortgages created or to be created under the powers of any Act passed after the passing of the Act of 1886 and the interest thereon.

All stock created under the powers of any Act passed after the passing of this Act and the interest thereon shall unless otherwise provided by such Act rank equally without any priority or preference with any stock created under the powers of this Act or of any Act passed after the passing of the Act of 1886 and the interest thereon.

Corporation to pay Trustees 50,000% on day of opening of dock.

46. The corporation shall on the day on which the dock or any portion thereof shall be opened for the reception of vessels pay the Trustees the sum of fifty thousand pounds and upon payment of such sum the liability of the corporation to the Trustees

under section 115 of the Swansea Corporation Act 1889 shall cease and be extinguished. The said sum of fifty thousand pounds shall not for the purposes of the said section of the said Act or of the section of this Act the marginal note of which is "Corporation to guarantee deficiency for ten years in income of Trustees and in next ten years Trustees to repay corporation" be taken into account in ascertaining any deficiency in the total income or revenue of the Trustees prior to the day on which the said payment is made. A.D. 1901.

47. The Trustees shall within three years after the passing of this Act replace the existing bridge over the North Dock entrance lock by a new and improved bridge and the corporation shall not be required nor be under any liability or obligation to make any contribution whatsoever towards the cost of such new bridge and such cost and any outstanding debt or liability of the Trustees in regard to the existing bridge shall not for the purposes of section 115 of the Swansea Corporation Act 1889 be taken into account in ascertaining any deficiency in the total income or revenue of the Trustees. Trustees to replace existing bridge over North Dock entrance lock.

48. The corporation shall during a period of ten years next after the day on which the dock or any portion thereof shall be opened for the reception of vessels guarantee any deficiency in the total income or revenue of the Trustees after providing for all expenditure including interest on capital any sums so guaranteed and paid not to exceed in the aggregate one hundred and fifty thousand pounds and the Trustees shall during the ten years subsequent to the said period repay to the corporation by yearly instalments all moneys which the corporation shall have so guaranteed and paid to the Trustees together with interest thereon at the rate paid by the corporation for any money borrowed by them for the purpose of the said guarantee and all other charges incurred in connection with the borrowing of the said moneys. And the Trustees may and if required by the corporation shall from time to time issue to the corporation either terminable mortgages or Swansea Harbour Stock at the option of the corporation to secure the repayment of the said moneys so guaranteed and paid as aforesaid and interest thereon at the rate aforesaid. Corporation to guarantee deficiency for ten years in income of Trustees and in next ten years Trustees to repay corporation.

49. The corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power for corporation to borrow.

(A) For the payment to be made to the Trustees on the day on which the dock or any portion thereof shall be opened for the reception of vessels the sum of fifty thousand pounds;

A.D. 1901.

(B) For the payment of any sum payable by the corporation in pursuance of the section of this Act whereof the marginal note is "Corporation to guarantee deficiency for ten years" in income of Trustees and in next ten years Trustees to "repay corporation" the sums necessary for that purpose not exceeding in the whole one hundred and fifty thousand pounds.

In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the corporation may mortgage or charge the borough fund and borough rate of the borough.

Certain regulations of Public Health Act 1875 as to borrowing not to apply.

50. The powers of borrowing money given by this Act to the corporation shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Mode of raising money.

51. The corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or by the creation and issue of adequate amounts of Corporation Stock under the Swansea Corporation Loans Act 1881 as amended by subsequent Acts or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions of Public Health Act as to mortgages to apply.

52. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted by the corporation under the provisions of this Act.

Periods for repayment of money borrowed.

53. The corporation shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

As to money borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power for corporation to borrow" within sixty years from the date or dates of borrowing the same ;

As to money borrowed for the purposes (B) mentioned in the said section within twenty years from the date or dates of borrowing the same.

54. The corporation shall pay off all money borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall in the case of money borrowed for the purposes (B) mentioned in the section of this Act the marginal note whereof is "Power for corporation to borrow" be made within ten years from the date of borrowing the sum in respect of which the payment is made and in the case of other moneys be made within one year from such date.

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Mode of
payment off
of money
borrowed.

55.—(1) If the corporation determine to repay by means of a sinking fund any money borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

Sinking
fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the corporation towards the equal annual payments to the fund.

(4) The corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if

A.D. 1901. invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the corporation in addition to the payments provided for by this Act.

(7) If it appears to the corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the corporation shall increase the payments to such extent as the Board may direct.

(8) If the corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government

Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

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(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose or purposes as the corporation with the consent of the Local Government Board may determine.

56. A person lending money to the corporation under this Act shall not be bound to inquire as to the observance by the corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of lender from inquiry.

57. The corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the corporation shall be sufficient discharge to the corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Corporation not to regard trusts.

58. Any mortgagee of the corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

Appointment of receiver.

The application for the appointment of a receiver shall be made to the High Court.

59. If the corporation pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed money they may reborrow the same but all money so reborrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed

Power to reborrow.

A.D. 1901. and the obligations of the corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such reborrowing.

Return
respecting
sinking fund
to Local
Government
Board.

60. The town clerk of the borough shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested in or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable

by writ of Mandamus to be obtained by the Local Government Board A.D.1901.
out of the High Court.

61. All money received by the corporation from the Trustees in pursuance of the section of this Act whereof the marginal note is "Corporation to guarantee deficiency for ten years in income of Trustees and in next ten years Trustees to repay corporation" other than sums received in respect of interest shall so long as any money borrowed for the purposes of that section shall remain unpaid be applied in the discharge of such money and subject thereto the money so received shall be paid into the borough fund of the borough or applied to such purposes as the corporation may determine.

Application
of money
received from
Trustees.

Any sums received by the corporation from the Trustees in pursuance of the said section in respect of interest shall be paid into the borough fund of the borough.

62. Any expense incurred by the corporation in pursuance of this Act other than expenses defrayed out of money borrowed shall be defrayed by the corporation out of the borough fund or borough rate of the borough.

As to ex-
penses of
corporation.

63. The corporation may take on lease from the Trustees any wharves or quay frontage at the dock for such term or terms of years at such rents and upon such conditions as may be agreed upon by the Trustees and the corporation.

Corporation
may take on
lease wharves
or quay fron-
tage of Trus-
tees.

64. The lease granted by the corporation to the Trustees of certain land at Swansea as set out in the Second Schedule to this Act is hereby confirmed and made binding on the parties hereto.

Confirmation
of lease from
corporation.

65. The agreement between John Alexander Weir of Leadenhall Buildings in the city of London merchant and Robert Spears Lambert of Fitzharris Abingdon in the county of Berks Esquire (trustees and executors of the will of the late Charles Joseph Lambert deceased) and the Trustees a copy of which is set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with trustees
of late C. J.
Lambert.

66. The agreement between Gertrude Barbara Rich Tennant and the Trustees a copy of which is set forth in the Fourth Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with Mrs.
Tennant.

67. The agreement between the Right Honourable the Earl of Jersey and the Trustees a copy of which is set forth in the Fifth Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with Earl
of Jersey.

A.D. 1901.

Confirming
agreement
with English
Crown Spel-
ter Company
Limited.

68. The agreement between the English Crown Spelter Company Limited and the Trustees a copy of which is set forth in the Sixth Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with Great
Western and
Rhondda and
Swansea Bay
Railway
Companies.

69. The Agreement No. 1 between the Trustees the Great Western Railway Company and the Rhondda and Swansea Bay Railway Company a copy of which is set forth in the Seventh Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with Rhon-
dda and
Great West-
ern Railway
Companies.

70. The Agreement No. 2 between the Trustees the Great Western Railway Company and the Rhondda and Swansea Bay Railway Company a copy of which is set forth in the Eighth Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

Confirming
agreement
with Duke
of Beaufort.

71. The agreement between his Grace the Duke of Beaufort and the Trustees a copy of which is set forth in the Ninth Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

As to audi-
tors.

72. Section CXI. of the Act of 1854 the marginal note of which is "Auditor to be appointed" is hereby repealed and the Trustees may appoint one or more person or persons not being Trustees or may appoint a firm or corporation to be auditor or auditors of the accounts of the Trustees and may pay such auditor or auditors reasonable remuneration for his or their time and trouble and such auditor or auditors shall be subject to the like disqualification or disability as is by the Act of 1854 provided with respect to persons appointed trustees.

Power to
apply funds
and as to
application
of money
borrowed
under Act.

73. The Trustees may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they have power to borrow or raise under the provisions of any Act relating to the Trustees and all moneys borrowed or raised by the Trustees under this Act shall be applied by them for the purposes of this Act or for the general purposes of the undertaking being in all cases purposes to which capital is properly applicable and not otherwise.

Works to
be included
in parish
and county
borough of
Swansea.

74. So much of the works by this Act authorised as are to be made and constructed in and upon the foreshore and any land reclaimed from the sea not included in any parish shall from and after the completion of the works be included for all purposes in the parish and county borough of Swansea.

75. The Trustees shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or ~~navigable river~~ communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Trustees shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Trustees and the amount of such costs and charges shall be a debt due from the Trustees to the Crown and shall be recoverable as a Crown debt or summarily.

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Works below high-water mark not to be commenced without consent of Board of Trade.

76. The Trustees shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

Lights on works during construction.

If the Trustees fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

77. The Trustees shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

Permanent lights on works.

If the Trustees fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

78. In case of injury to or destruction or decay of the pier or works or any part thereof the Trustees shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken and

Provision against danger to navigation.

A.D. 1901. the Trustees shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Saving
rights of
Crown.

79. Nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Saving
rights of
Duke of
Beaufort

80. Except as is by this Act expressly provided nothing herein contained shall affect prejudice alter diminish abridge or take away any royalty right or property of the Duke of Beaufort his heirs successors or assigns in or to the foreshore of the seigniories of Gower and Kilvey and the port and harbour of Swansea and the water channel and soil of the river Tawe and the fisheries therein and the said river itself but except as aforesaid the same respectively shall remain to him and them wholly and altogether as if this Act had not been passed.

Expenses of
Act.

81. All the costs charges and expenses of applying for obtaining and passing this Act and incidental thereto shall be borne and paid by the Trustees out of the Swansea Harbour Fund.

SCHEDULES referred to in the foregoing Act. A.D. 1901.

THE FIRST SCHEDULE.

DESCRIBING PROPERTY OF WHICH PART ONLY IS REQUIRED TO
BE TAKEN.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
11	Llansamlet Higher	Slag tips and tipping ground.
12	"	Tipping ground and occupation road.
13	"	Tipping ground.
14	"	Tipping ground.
15	"	Roadway.
17	Swansea	Rough land and part of garden.

THE SECOND SCHEDULE.

THIS INDENTURE made the twenty-fourth day of June one thousand nine hundred and one between the mayor aldermen and burgesses of the borough of Swansea (hereinafter called "the lessors") of the one part and the Swansea Harbour Trustees (hereinafter called "the lessees") of the other part.

WITNESSETH that in consideration of the rent and lessees covenants hereinafter reserved and contained the lessors with the consent of the Local Government Board as testified by an instrument under the seal of the said Board dated the thirtieth day of April one thousand nine hundred hereby demise unto the lessees All that piece or parcel of ground situate in the said borough of Swansea having a frontage to Somerset Place of ninety-two feet and eight inches to Adelaide Street of one hundred and forty-six feet and nine inches and to Pier Street of ninety three feet and containing in the whole one thousand five hundred and eight square yards or thereabouts which said piece

A.D. 1901. — or parcel of ground is delineated and coloured red and green in the plan drawn on the back of these presents Together with liberty for the lessees to pull down the existing messuages and buildings and to erect and build in lieu thereof other messuages and buildings on the said piece or parcel of ground and without any restriction as to the height thereof notwithstanding that the same may affect or lessen the access of light or air to any adjoining or neighbouring houses or buildings of the lessors save only that the lessees shall not place on so much of the said piece of ground as is coloured green on the said plan any erection or building exceeding nine feet in height Provided always that such buildings shall be in conformity with the byelaws as to new buildings and streets in force in the said borough of Swansea Except and reserving unto the lessors all mines and minerals lying in or under the said piece or parcel of ground with liberty for the lessors their agents and workmen at all times with or without horses carts and carriages to enter upon the said premises and every part thereof to search for work dress manufacture render merchantable and carry away the said mines and minerals and for the purposes aforesaid to do all acts and things they shall think necessary and expedient the lessors however making and paying to the lessees full compensation for all damage or injury sustained by them To hold the said premises hereinbefore expressed to be hereby demised unto the lessees from the twenty-fourth day of June one thousand nine hundred and one for the term of ninety-nine years from thence next ensuing yielding and paying therefor yearly during the said term the rent of four hundred pounds payable by equal quarterly payments on the twenty-fifth day of March the twenty-fourth day of June the twenty-ninth day of September and the twenty-fifth day of December in every year the first payment to be made on the twenty-ninth day of September one thousand nine hundred and two And the lessees hereby covenant with the lessors in manner following (that is to say) The lessees will during the said term pay the rent hereby reserved at the times and in manner hereinbefore appointed and also will during the said term pay all rates taxes charges and assessments which now are or during the said term shall be imposed or assessed upon the said premises hereby demised or the landlord or tenant in respect thereof (except land tax and landlords' property tax) And also will within the space of three years from the date of these presents in conformity with a plan elevation and specification to be approved of by the lessors in and upon the said piece or parcel of ground or upon part thereof in a good substantial and workmanlike manner and to the satisfaction of the borough surveyor erect build and finish so as to be fit for use offices to the value of at least five thousand pounds with all proper and suitable outbuildings yards walls drains and other conveniences And also that the lessees will from time to time and at all times during the said term well and sufficiently repair maintain cleanse and in good and tenantable repair and condition keep the said offices and other buildings so to be erected as aforesaid and the appurtenances belonging thereto and the same so repaired maintained cleansed and kept will quietly surrender and yield up unto the lessors at the expiration or sooner determination of the said term And also will immediately the said offices are completed level pave kerb channel and make good

(or at the option of the lessors pay to them the cost thereof) the whole of the pavements abutting on the premises hereby demised to the widths and as shown upon the said plan such work to be executed in accordance with the directions and to the satisfaction of the borough surveyor. And that the lessees will at all times during the said term insure and keep insured the buildings to be erected as aforesaid from loss or damage by fire in some good insurance office to the value of five thousand pounds and will pay all premiums and other moneys necessary for that purpose and upon the request of the lessors or their agent receiver or treasurer for the time being produce to them or him the receipt for the premium on such insurance for every current year and will as often as the said buildings or any of them shall be destroyed or damaged by fire or other accident immediately lay out and apply the money to be received by virtue of any such insurance as aforesaid and also such other sums of money (if any) as shall be necessary for that purpose in well and sufficiently rebuilding repairing and reinstating the same under the inspection of and to the satisfaction of the said borough surveyor. And also that it shall be lawful for the lessors or the said surveyor or agent for the time being with or without workmen from time to time and at reasonable times in the day during the said term to enter into and upon the said demised premises and the buildings to be erected thereon as aforesaid or any part thereof to examine and view the condition thereof and if found necessary upon such view and examination to give to the lessees or leave at or upon the said premises or any part thereof notice in writing to repair paint make good and restore the same. And that the lessees will within three calendar months next after such notice well and sufficiently make good and restore the same. Provided always that if and whenever the said yearly rent hereby reserved or any part thereof shall at any time be unpaid for the space of twenty-one days next after the same shall have become due whether the same shall have been lawfully demanded or not or if the lessees during the said term shall in anywise neglect or refuse to fulfil observe perform and keep the covenants and conditions hereinbefore reserved and contained which on their part are or ought to be performed fulfilled and kept then and in any such case it shall be lawful for the lessors or their officers and servants for them and in their name notwithstanding their waiver of any previous cause or right of re-entry to enter upon the said demised premises buildings or any part thereof in the name of the whole and to repossess retain and enjoy the same as of their former estate. And the lessors hereby covenant with the lessees that the lessees paying the rent hereby reserved and observing and performing the covenants and conditions herein contained and on their part to be observed and performed shall and may peaceably and quietly possess and enjoy the said premises hereby demised during the said term without any lawful interruption by or from the lessors or any person rightfully claiming from or under them. And it is hereby declared that where the context allows the expressions "the lessors" and "the lessees" used in these presents include respectively beside the said mayor aldermen and burgesses their successors and assigns and beside the said Swansea Harbour Trustees their successors and assigns.

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IN WITNESS whereof the mayor for the time being of the said borough by the direction of the lessors acting by the council hath hereunto affixed the common seal of the said borough and the lessees have caused their common seal to be hereunto affixed the day and year first before written.

The common seal of the borough of Swansea affixed by the

Mayor for the time being in the presence of

WILLIAM WATKINS

Mayor.

JNO. THOMAS

Town Clerk

Swansea.

L.S.

The common seal of the Swansea Harbour Trustees was hereunto affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

L.S.

THE THIRD SCHEDULE.

THIS AGREEMENT made the eighteenth day of July one thousand nine hundred and one between JOHN ALEXANDER WEIR of Leadenhall Buildings in the city of London merchant and ROBERT SPEARS LAMBERT of Fitzharris Abingdon in the county of Berks Esquire (trustees and executors of the will of the late Charles Joseph Lambert deceased and hereinafter called "the vendors") of the one part and THE SWANSEA HARBOUR TRUSTEES (hereinafter called "the purchasers") of the other part.

1. The vendors shall sell to the purchasers who shall purchase for the sum of one hundred and thirty-five thousand pounds and upon the terms and subject to the conditions hereinafter mentioned (1) All the leasehold hereditaments specified in the First Schedule hereto and all other (if any) the estate and interest of the vendors in the works of the vendors situate at or near Port Tennant near Swansea in the county of Glamorgan and in all lands foreshore wharves buildings water tipping and other rights wayleaves hereditaments and premises reclaimed used held or enjoyed by the vendors in connection therewith except and reserved to the vendors a piece of land containing one acre two roods and twenty-six perches or thereabouts with the dwelling-houses erected on part thereof known as Wern Terrace in the hamlet of St. Thomas in the parish of Swansea (2) All fixed and moveable machinery engines plant tools stores furniture horses carts barges and other effects except as hereinafter mentioned now belonging to or used by the vendors in connection with the said works lands buildings and premises or any of them in the condition in which the same respectively shall be on

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the first day of August one thousand nine hundred and two but subject to clause 3 hereof and also the benefit as from that day of the contracts referred to in the Second Schedule hereto and all books papers and documents relating to any contract the benefit of which is hereby sold or to any liability hereby agreed to be undertaken by the purchasers except and reserved to the vendors all contracts other than such as are referred to in the said Second Schedule and all securities and all books and papers other than deeds and documents relating to the title of any of the hereditaments hereby agreed to be sold and other than such as are hereinbefore mentioned and (3) All the goodwill of the business or businesses now carried on by the vendors on the said premises or any part thereof as a going concern so far as consistent with the provisions of these presents on the first day of August one thousand nine hundred and two but without any right to use the names or designations of the vendors in respect of the same except as mentioned in clause 11 hereof and without any right of the purchasers to compensation for interruption or damage caused by the breaking up of the furnaces and works under the reservation in clause 10 hereof.

2. The purchasers shall pay the said purchase-money with interest as hereinafter mentioned to the vendors or as they shall direct at the office of the vendors' solicitors Messrs. Budd Johnsons and Jecks at 24 Austin Friars London in manner following that is to say The principal of the said purchase-money shall be paid by three equal instalments of forty-five thousand pounds each on the first day of August one thousand nine hundred and two the first day of August one thousand nine hundred and three and the first day of August one thousand nine hundred and four respectively and on each of the two last-mentioned days interest at the rate of four per cent. per annum from the first day of August one thousand nine hundred and two upon the balance of purchase-money for the time being remaining unpaid shall also be paid If the purchasers shall make default in payment of any of the said instalments or interest or any part thereof respectively on the day hereinbefore appointed for payment thereof the whole of the purchase-money then remaining unpaid with interest thereon at the rate aforesaid from the first day of August one thousand nine hundred and two until payment shall become immediately due and payable Provided also that the purchasers shall be at liberty at any time or times after the first day of August one thousand nine hundred and two upon giving at least three calendar months notice in writing of their intention so to do to pay off all or any part of the purchase-money for the time being unpaid so that not less than ten thousand pounds be so paid off at any one time and that at the same time all interest on the amount of principal so paid off up to the time of payment be also paid and that every such payment shall be taken in anticipation of the next instalment falling due thereafter which shall be reduced accordingly Upon payment of the said first instalment of forty-five thousand pounds on the day aforesaid the purchasers shall be let into possession of the premises hereby agreed to be sold with full power to pull down remove and alter buildings and fixtures and to dispose of the effects mentioned in sub-clause (2) of clause 1 hereof.

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3. The vendors shall be entitled to carry on their works and business or any part thereof in the accustomed manner and consistently with these presents and the rents and profits or possession will be received or retained and the outgoings discharged by the vendors up to the first day of August one thousand nine hundred and two as from which day all outgoings shall be discharged by and the rents and profits or possession shall belong to the purchasers and the rents profits and outgoings shall if necessary be apportioned for the purpose of this provision. In carrying on the works and business under this clause the vendors will execute all such repairs as shall be necessary to keep the effects mentioned in sub-clause (2) of clause 1 hereof until the first day of August one thousand nine hundred and two in as good a condition as they are now in fair wear and tear and user in business excepted and provided that the vendors shall not be required to make any substitutions or renewals or to do any repairs or reinstatements consequent on any damage done in breaking up the furnaces and adjacent ground and extracting the copper under clause 10 of these presents but the rolling mills weighing machines locomotive fixed and other engines and railway wagons are to be given up in fair working order.

4. The leasehold property is sold for all the residue of the respective terms of years for which the same is held as mentioned in the said First Schedule hereto and subject to all chief quit and other rents renders reservations and outgoings and to all incidents of tenure rights of way water lights drainage and other easements if any affecting the same and all rights of adjacent owners and to any liability to repair or contribute to the repair of roads ways passages bridges sea walls dykes sewers drains gutters fences and other like matters.

5. The vendors shall on or before the first day of October one thousand nine hundred and one deliver or send by post to the purchasers or their solicitors an abstract of their title to the said premises commencing as to part thereof with a lease or underlease dated fifth August one thousand eight hundred and sixty-one as to other part thereof with a lease dated twenty-third August one thousand eight hundred and eighty-four as to other part thereof with an underlease dated eighth February one thousand eight hundred and ninety-two and as to other part thereof with an agreement dated twenty-seventh April one thousand eight hundred and ninety-four as in the schedule hereto mentioned and shall also furnish an attested copy of the said lease dated the twenty-fourth August one thousand eight hundred and twenty-eight and the purchasers shall not require the production of or investigate or make any requisition in respect of the title prior to the title to be so abstracted whether the same shall appear to be in the vendors' possession or power or not and in particular shall not object to a reservation as to mines in the lease of one thousand eight hundred and sixty-one having been made with reference to previous documents which cannot now be produced or as to the power of the vendors or their predecessors as Trustees to take the underlease of one thousand eight hundred and ninety-two or as to the provisions of the superior lease in the underlease of one thousand eight hundred and ninety-two referred to which cannot be produced. The purchasers shall be considered as having

full notice of the provisions of the several documents in this clause referred to whether special or otherwise. A.D. 1901.

6. The vendors shall not be required to furnish any evidence of the identity of the present with any former description of the property beyond what may be afforded by the muniments themselves nor to reconcile differing descriptions.

7. The receipt for the last payment of rent or render accrued due previously to the first day of August one thousand nine hundred and two in respect of the property or any part thereof shall be accepted as conclusive evidence of the performance of all the covenants and conditions in the lease or underlease under which the same is held or of the effectual waiver of any breach of any such covenant or condition up to that day but it is expressly stipulated that as the rents and dues, and particularly the canal dues, under the said lease of one thousand eight hundred and sixty-one have not or may not have been regularly and properly paid or accounted for during the last few years the vendors shall before or on the first day of August one thousand nine hundred and two either pay or account for the same in full up to that day or at the option of the vendors enter into a covenant with the purchasers to save harmless and indemnify the purchasers therefrom and from all claims in respect thereof.

8. On payment of the whole of the purchase-money and interest as aforesaid the purchasers shall be entitled to a proper assurance of the property from the vendors and all other necessary parties if any such assurance to be prepared by and at the expense of the purchasers but as to the said underlease of one thousand eight hundred and ninety-two the purchasers must undertake to procure the licence of the lessors to the assignment thereof.

9. Within twenty-eight days after the delivery of the abstract the purchasers shall furnish to the solicitors of the vendors a statement in writing of their requisitions and objections arising on the abstract or as to title and within fourteen days after the delivery of the vendors' replies to the purchasers requisitions and objections (if any) the purchasers shall furnish to the solicitors of the vendors a statement in writing of their further requisitions or objections (if any) arising on such replies and every requisition or objection not so stated shall be considered as waived and for the purpose of any objection or requisition an abstract shall be deemed perfect if it supply the information suggesting the same although otherwise defective and if no requisition or objection is so stated the title shall be considered as accepted and in these respects time shall be deemed of the essence of the contract.

10. The vendors reserve to themselves the right at any time before the first day of August one thousand nine hundred and two to break up and remove for a short distance but not off the property the materials of the furnaces and other like erections pavements floorings and adjacent ground at the said works or any part thereof and to extract and take away the copper or other mineral contained in the bottoms or other parts thereof and also in all pavements or floorings on adjacent ground in any way connected

A.D. 1901. therewith and to use the same as thought fit during the operation but so that no more damage than shall be reasonably necessary shall be thereby done to the furnaces or otherwise. The vendors also reserve to themselves with right of removal all stocks of copper and other metals and copper and other metallic ores on the said premises and belonging to the vendors which stocks are hereby expressly excepted out of the present sale but shall be removed by the vendors before the first day of August one thousand nine hundred and two.

11. The purchasers shall take upon themselves the liability on the said contracts referred to in the Second Schedule hereto and shall as to all minerals goods or merchandize which on the first day of August one thousand nine hundred and two shall be deposited with the vendors as connected with their business of wharfingers and which shall then be delivered to the purchasers undertake with the vendors to deliver all such minerals goods and merchandize in as good condition as that in which they shall have been delivered to the purchasers to the respective owners or other persons entitled to require delivery thereof respectively upon delivery to the purchasers of the respective delivery orders dock or other warrants or other documents of title relating to the same duly signed endorsed or completed and shall indemnify the vendors from all claims and demands in respect thereof arising from any act or omission which may occur after that day and shall also on that day satisfy and pay to the vendors the proportion up to that day of all rents which shall then be payable to the vendors in respect of any such minerals goods and merchandize as aforesaid as shown by their books and accounts less five per cent. of such proportion of rents with the right in the purchasers to recover over the same from the parties liable for payment and for that purpose if necessary to use the names of the vendors or of C. Lambert & Co. upon indemnity being given in respect of the same.

12. After the first day of August one thousand nine hundred and two and until the property shall have been assured to the purchasers the vendors will at any time or times at the request and cost of the purchasers join with the purchasers in granting any lease of the said premises or any part or parts thereof which the purchasers may think fit and are by statute or otherwise authorised to grant provided that such lease shall be for a term not exceeding ninety-nine years—to take effect in possession and shall reserve the best rent that can reasonably be obtained without taking anything in the nature of a fine or premium and shall contain a covenant by the lessee for payment of rent and a condition for re-entry on non-payment of rent within a time therein specified not exceeding thirty days and the usual qualified covenant for quiet enjoyment and no other covenant by the vendors and subject as aforesaid may contain such reasonable covenants and provisions as the purchasers shall think fit. If any question as to whether the rent proposed to be reserved in any lease is or is not the best rent that can reasonably be obtained the amount of such best rent shall if required by the vendors be determined by the valuation of some competent surveyor to be appointed by the parties or in default of their agreement by the President for the time being of the Surveyors' Institution and the valuation of such surveyor shall be final and his fee and expenses shall be paid by the purchasers.

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13. If the purchasers shall make default in payment of any purchase-money or interest on the day hereinbefore appointed for payment thereof the vendors shall be at liberty (without being obliged to tender a conveyance) to resell the premises hereby agreed to be sold (except such of the effects mentioned in sub-clause (2) of clause 1 hereof as may have been theretofore disposed of by the purchasers) either by public auction or private contract and in the event of any such sale shall apply the money received therefrom first in payment of all costs charges and expenses properly incurred by them as incident to the sale or any attempted sale or otherwise and secondly in discharge of all purchase-money interest and other money if any for the time being due to the vendors under this agreement and shall pay the residue of the money so received to the purchasers at the present sale and if the money so received shall be insufficient to satisfy in full all the payments to be first and secondly made as aforesaid then any deficiency shall be made good and paid by the purchasers at the present sale as liquidated damages Provided that the power of sale conferred by this clause shall not be exercised unless and until notice in writing requiring payment of the purchase-money and interest shall have been served on the purchasers and default shall have been made in payment of such purchase-money and interest or any part thereof for three calendar months after such service but upon any sale purporting to be made in exercise of the power of sale conferred by this clause no purchaser thereat shall be bound to see whether any case has arisen to authorise the sale or whether due notice has been given or whether any purchase-money or interest remains unpaid or whether the power is otherwise improperly or irregularly exercised or be affected by express notice of any impropriety or irregularity therein and notwithstanding any such impropriety or irregularity such sale so far as regards the safety and protection of any such purchaser shall be deemed to be within the aforesaid power and be valid and effectual accordingly and the remedy of the purchasers at the present sale shall be in damages only Provided that the said power of sale may be exercised by any person for the time being entitled to receive and give a discharge for the purchase-money payable under this agreement and no person exercising such power shall be answerable for any involuntary loss happening in or about the exercise thereof or the execution of any trust connected therewith and the receipt in writing of the vendors or any other person hereby authorised to exercise the said power of sale shall be a sufficient discharge for any money payable upon such sale and a person paying the same on such receipt shall not be concerned to see to the application thereof or be answerable for any loss or misapplication thereof or to inquire whether any money remains due under the said power.

14. This agreement is subject to the sanction of Parliament being given thereto in the present session and if such sanction shall not be obtained in such session this agreement shall become void.

15. The vendors shall not have any right of pre-emption in the event of any land hereby agreed to be sold becoming superfluous land within the meaning of the Lands Clauses Consolidation Act 1845.

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16. Subject to the provisions of clauses 12 and 13 hereof the parties hereto shall respectively bear their own costs of and incidental to this agreement and the carrying the same into effect.

17. This agreement is made subject to such alterations as Parliament may see fit to make therein with the assent of the vendors and purchasers.

IN WITNESS whereof the said John Alexander Weir and Robert Spears Lambert have hereunto set their hands and seals and the Swansea Harbour Trustees have hereunto caused their common seal to be affixed the day and year first above written.

The FIRST SCHEDULE above referred to.

1. All the land wharves canal or branches of canal houses cottages rights privileges and premises situate and being or exerciseable at or near Port Tennant and the harbour of Swansea in the county of Glamorgan comprised or described in or demised or conferred by an indenture of lease dated 5th August 1861 and made between Henry Tennant and Charles Tennant of the one part and Charles Lambert of the other part at the rents and renders and subject to the reservations covenants and provisions therein contained but as to the cottages described in the said lease as Griffiths' Cottages (and which for many years past have not been used as cottages but as part of the said works) and right of road thereto subject to a lease thereof dated 24th August 1828 and still existing and save and except a small portion of the premises comprised in the said lease of 1861 which was surrendered to the purchasers by an indenture dated 23rd August 1884.

2. Also all that piece of land adjoining the premises comprised in the last-mentioned lease and demised by the purchasers to the late Charles Joseph Lambert by an indenture dated 23rd August 1884 at the rent and render and subject to the provisions and covenants therein contained.

3. All that piece of land situate near the aforesaid premises and Port Tennant and the liberties powers authorities rights and privileges and other the hereditaments comprised in and conferred by an underlease dated 8th February 1892 and made between Albert Charles Hadland of the one part and Susan Lambert and John Alexander Weir of the other part subject to the rents reservations provisions and covenants therein reserved and contained and also subject to an agreement dated the 8th June 1896 and made between the vendors and the purchasers by their respective agents whereby the purchasers acquired or agreed to acquire a piece of land and rights over land comprised in the said lease dated the 8th February 1892 upon the terms in such agreement mentioned including the payment to the vendors of the sum of one thousand one hundred and twenty-five pounds by way of purchase money which sum has already been paid by the purchasers to and is to be retained by the vendors.

4. All and singular the rights liberties powers privileges and easements acquired by the vendors or their predecessors and now existing under or by

A.D. 1901.

virtue of an agreement under seal dated 27th April 1894 and made between the said Susan Lambert and John Alexander Weir of the one part and the purchasers of the other part which agreement was confirmed by the Swansea Harbour Act 1894 and which agreement has been partly carried into effect by the purchasers taking possession of a small piece of land of the vendors affected thereby for the purposes therein mentioned it being the intention of the parties that after the completion of the purchase neither the vendors nor the purchasers shall have any right or claim against the others of them under or by virtue of the last-mentioned agreement.

and I have and my co-trustees have caused the same to be signed and sealed by the said John Alexander Weir in the presence of the said Charles Edward Beck and Colonel (half-pay) Hillside Bridge Canterbury.

The **SECOND SCHEDULE** above referred to.

All contracts represented by warrants or receipts entered into by the vendors or their predecessors as executors of Charles Joseph Lambert deceased in connection with their business as wharfingers and affecting any such minerals goods or merchandize as are referred to in clause 11 of the above agreement and all similar contracts which may hereafter be entered into by the vendors prior to the first day of August one thousand nine hundred and two.

Signed sealed and delivered by the
above-named John Alexander
Weir in the presence of
CHARLES EDWARD BECK
Colonel (half-pay)
Hillside Bridge
Canterbury.

JNO. A. WEIR.

L.S.

Signed sealed and delivered by
the above-named Robert Spears
Lambert in the presence of
HERBERT W. JOHNSON
24 Austin Friars
London
Solicitor.

ROBERT S. LAMBERT.

L.S.

The common seal of the Swansea Harbour Trustees was hereunto
affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

L.S.

A.D. 1901.

THE FOURTH SCHEDULE.

AN AGREEMENT made the 13th day of June 1901 between GERTRUDE BARBARA RICH TENNANT of Cadoxton Lodge in the county of Glamorgan widow (hereinafter called "the petitioner") of the one part and THE SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees") of the other part.

WHEREAS a Bill of which the Trustees are the promoters has been introduced into and is now pending in Parliament intituled "A Bill to authorise the Swansea Harbour Trustees to make a new dock enlarge and extend the half-tide basin of the south dock and construct new railways to extend the limits of the harbour and for other purposes" whereby it is proposed (amongst other things) that the Trustees shall be authorised to make construct and maintain certain works and amongst others a new dock and lock on the bed and foreshore of Swansea Bay which intended new dock is hereinafter referred to as "the new dock":

AND WHEREAS the petitioner has petitioned the House of Commons against the said Bill and in order to the withdrawal of her opposition to the said Bill the parties hereto have entered into the agreement hereinafter appearing:

Now it is hereby agreed as follows:—

1. The petitioner and all other necessary parties shall for the consideration provided by these presents assign to the Trustees free from incumbrances for the residue of the term of 1,000 years created by the lease dated the 31st December 1817 from George Earl of Jersey to George Tennant (hereinafter called "the Jersey lease")—

- (A) So much of the lands canals works rights and hereditaments comprised in or held under that lease as are comprised in or held by the successors of Charles Lambert under the sub-lease dated the 5th August 1861 from Henry Tennant and Charles Tennant to Charles Lambert subject to the said sub-lease so far as the same premises are affected thereby;
- (B) The piece of land east of and immediately adjoining the Port Tennant Copper Works south of the Tennant Canal towing path and separated from the arsenic works by land of Lord Jersey not included in the Jersey lease;
- (C) Her interest in the foreshore and in land made by the tipping from the said copper works.

The petitioner and all other necessary parties shall also for the consideration aforesaid assign to the Trustees free from encumbrances for the residue of a term of 60 years granted by the lease next hereinafter mentioned all the cottages lands and property near the English Crown Spelter Works held under an indenture of lease granted by the then Earl of Jersey to Morgan Morgan dated the 1st August 1851.

2. The petitioner and all other necessary parties shall also for the consideration aforesaid surrender to the Trustees free from incumbrances

the indenture of lease dated the 1st day of March 1827 from Henry Charles Duke of Beaufort and Henry Somerset Marquis of Worcester to George Tennant and all hereditaments now held by the petitioner thereunder subject to and with the benefit of the said lease of 5th August 1861 so far as the same premises are affected thereby.

3. As from the completion of the purchase hereby agreed to be made and payment of the sum of 30,000*l.* hereinafter mentioned the petitioner shall during the residue of a term of 1,000 years reckoned from the 1st of March 1827 pay to the Trustees firstly $\frac{3}{4}$ *d.* per ton on coal culm iron goods wares and merchandizes of every sort and quality carried or borne on that portion lying westward of Crymlyn Bridge of the Tennant Canal (which shall for this purpose be deemed to include every and any towpath and every and any collateral cut or branch canal now belonging to the petitioner lying westward of Crymlyn Bridge) or on any railway or other road or way which may be made on the site of and in substitution for the said portion of the Tennant Canal or any part of such portion and secondly the sum of fourpence for every Swansea weigh of coal and culm and after that rate for any greater or less quantity than a weigh every such weigh to consist of ten tons which shall or may at any time or times and from time to time hereafter be shipped to sea westward of Crymlyn Bridge by the petitioner her executors administrators or assigns or the proprietor or proprietors of the said canal for the time being or her or their lessees tenants or servants or which she or they shall by means of the said canal or otherwise bring and carry or cause or procure to be brought or carried for shipment to sea westward as aforesaid Provided always that with reference to the said sum of 4*d.* per weigh the whole amount thereof which shall be payable by the petitioner in any and every year reckoned from the 1st of March shall not exceed 60*l.* Provided always that no sum shall by virtue of this clause be paid or payable for any coal or culm iron or other goods wares or merchandizes which shall or may be carried on the Tennant Canal as above defined or any part thereof in respect of which no tolls or dues or other satisfaction compensation or reward shall be received or acquired by or payable unto the petitioner her executors administrators or assigns or the proprietor or proprietors for the time being of the said portion westward of Crymlyn Bridge of the said canal or her or their lessees tenants or servants The petitioner shall be bound to keep and render and allow inspection of accounts as provided by the said lease of the 1st of March 1827 and shall covenant so to do.

4. The Trustees shall pay to the petitioner 30,000*l.* for the purchase of the lands and premises hereby agreed to be assigned and surrendered to them and for and in satisfaction of any future loss of canal revenue which the petitioner may sustain through or in consequence of the sale of the said copper works to the Trustees (20,000*l.* of such sum of 30,000*l.* being for the said purchase and the remaining 10,000*l.* thereof being in respect of such loss of revenue) The said sum of 30,000*l.* shall be paid within twelve calendar months of the passing of the said Bill and any part not so paid shall from the time at which it is payable carry interest at 4*l.* per cent. per annum The lands and premises hereby agreed to be assigned and surrendered to the Trustees shall

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5. The Trustees as from the expiration of the said period of twelve months or sooner completion of the purchase shall indemnify the petitioner against her obligation to Lord Jersey under an indenture of 26th March 1857 made between Henry Tennant and Charles Tennant of the 1st part William Henry Smith and John Wormald of the 2nd part and George Earl of Jersey of the 3rd part in respect of the furnace rent or rentcharge viz. 5*l.* per furnace per annum but so far only as such obligation arises out of anything done or to be done upon any of the land to be assigned by the petitioner to the trustees.

6. So long as the said copper works shall be used for copper smelting purposes the Trustees shall allow the present water access thereto from the Tennant Canal to continue or in lieu thereof provide equally convenient access by water to such works.

7. The Trustees shall if required by the petitioner and at her expense raise the bridge over the said canal at the point marked "B" on the plan signed by Arthur Thomas Williams and Talfourd Strick three feet higher than the level of the existing bridge and the Trustees and all persons authorised by them shall have the right of using such bridge whether raised or not and with or without horses carts and vehicles but not locomotives jointly with the petitioner and her tenants licencees and traders Provided that the Trustees in using such bridge shall not interfere with or interrupt the traffic on the canal or the towing path or bridge more than is necessary Provided further that if at any time the petitioner shall deem it necessary for the purposes of the traffic of the said canal to further raise the level of the said bridge and it shall be practicable to do so having regard to levels the petitioner may raise the said bridge accordingly but so that the said bridge shall always remain reasonably suitable for use by horses carts and vehicles.

8. The Trustees shall have full power to make maintain and use a bridge over the said canal for the purpose of carrying the Railway No. 3 to be constructed under the powers of the intended Act also two further bridges gantries or communications over the said canal at points to be agreed upon between the petitioner and the Trustees between the points marked "D" and "C" on the said plan signed as aforesaid.

9. The four bridges hereinbefore referred to shall be maintained by and at the expense of the Trustees who shall construct and maintain sufficient support and protection by substantial stone retaining walls or otherwise for the towing-path under and along the approaches to such bridges The whole of the works referred to in this and the last preceding clause shall be constructed according to plans and sections to be first approved of by the petitioner's engineer and in all things to his reasonable satisfaction or in case the Trustees are dissatisfied with his decision as shall be settled to be proper

and reasonable by an engineer to be appointed by the President for the time being of the Institution of Civil Engineers.

10. Before opening or using for traffic the new dock or any part thereof the Trustees shall at their own expense construct the following works:—

(A) The branch canal and lay bye and towing path shown on the said plan signed as aforesaid such branch canal and lay bye to be respectively 30 feet wide and 6 feet deep and such towing path to be 10 feet wide and the branch canal to be properly connected with the main Tennant Canal:

(B) The road coloured brown and footway coloured yellow on the said plan signed as aforesaid such road to be of a uniform width throughout of 20 feet. The Trustees and all persons authorised by them and the petitioner and her tenants and traders shall be entitled to use the said road and footway jointly and as to the said road as a road or carriage-way and such road and footway subject to the said rights of the petitioner and her tenants and traders therein shall be under the control regulation and management of the Trustees in like manner as any other part of the Swansea Harbour Undertaking:

(C) A vertical quay wall on the new dock (with the same depth of water along the whole length of such quay wall as in other parts of the new dock) along and for the length of the 500 feet shown on the said plan:

(D) The northern line of the new dock to be altered from that shown on the deposited plan in accordance with the line shown on the said plan signed as aforesaid.

If the Trustees desire to further alter the northern line of the new dock they shall be at liberty to do so provided that they make corresponding alterations in the works mentioned in this clause so as to render the same equally convenient and suitable for the petitioner and her traders. Any dispute under this proviso to be referred to an engineer to be appointed as aforesaid.

11. If so much of the new dock as would make the works mentioned in clause 10 capable of being used in connection therewith shall not be constructed and the Trustees shall hereafter apply to Parliament for powers to construct any other dock eastward of the entrance channel to the Prince of Wales Dock and within half a mile of the said copper works the Trustees will either secure to the petitioner works and facilities in connection with such other dock equivalent to those mentioned in clause 10 or they will admit the right of the petitioner to oppose such application with a view to her obtaining such works and facilities.

12. If and when so much of the new dock as will make the works mentioned in clause 10 capable of being used in connection therewith shall be constructed the Trustees shall grant to the petitioner a lease of the premises referred to in Heading A of such clause for the residue of a term of 1,000 years from 1st March 1827 at the rents and subject to the covenants hereinafter mentioned. The parties shall pay their own respective costs of such lease.

13. The lease to be granted under the last preceding clause hereof shall reserve to the Trustees liberty to make lay and use any roads railways bridges

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gantries tunnels subways culverts sewers pipes and wires and other communications and conveniences over or under the said branch canal hereby agreed to be made or over or under or along the said towing-path thereof but not so as to interfere with the proper use of such branch canal and towing-path. The Trustees shall have the like liberty over or under or along the said road and footway hereinbefore agreed to be made but not so as to interfere with the proper user thereof. The said lease shall except all mines and minerals and shall reserve as rents the sums of 4*d.* a weigh limited as aforesaid and $\frac{3}{4}$ *d.* per ton by clause 3 hereof agreed to be paid and shall contain such provisoes and covenants as are referred to in clause 3 hereof.

14. The petitioner shall be at liberty at any time within the period during which the Trustees may be authorised to complete the new dock to construct at her own expense a lock communication on the land coloured pink on the said plan signed as aforesaid of such dimensions as she may think fit to connect the said branch canal to be constructed by the Trustees as aforesaid with the new dock for the purpose of access to and from such dock from and to the said branch canal. The Trustees shall allow the petitioner the free use of a reasonable quantity of land and reasonable facilities which she may require for the purpose of constructing the said lock communication. The construction of the said lock communication to be carried out subject to the reasonable approval of the Trustees' engineer and the petitioner's engineer and in case of dispute to the reasonable approval of an engineer appointed as aforesaid.

15. The petitioner when the said lock communication has been constructed shall be entitled to pass barges loaded or otherwise through the same and into and along the new dock and from the new dock into the said branch canal free of charge in respect of such barges. Nothing in this clause contained shall exempt any goods carried in such barges from any harbour rates on goods or dock rates on goods or wharfage rates which the Trustees may for the time being be authorised to demand take or levy but the operation of loading or discharging into or from a ship from or into a barge shall be charged only in respect of the loading into or (as the case may be) discharging from the ship and not in respect of the discharging from or loading into the barge.

16. The petitioners shall have a preferential right to berth ships and vessels (including barges) at the said 500 foot quay in single tier broadside-on for the purpose only of loading or discharging cargo or bunkers or part cargo or bunkers from or to the said lay bye as follows. If any ship or vessel should be lying at such quay when the quay shall be actually required by the petitioner or her traders for berthing a ship or vessel or ships or vessels for the purpose aforesaid the Trustees will within twelve hours of request by or on behalf of the petitioner at any time remove such first-mentioned ship or vessel from the said quay or from so much thereof as shall be required by the petitioner or her traders for berthing such last-mentioned ships or vessels. The exercise of the rights by this or any other clauses hereof given to the petitioner shall be subject to the reasonable control and regulation of the harbour master to be exercised by him as in other parts of the harbour.

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17. The Trustees shall provide on the land coloured green on the said plan signed as aforesaid all suitable cranes sling chains and tubs necessary for efficiently dealing with all traffic at the said quay at the same rates and charges as at other parts of the new dock and the Trustees shall make no greater charge for loading or discharging traffic into or from barges in the said lay bye from or to ships or vessels at the said quay than the charge for the time being made by them in respect of traffic (which expression includes all kinds of goods) of a similar nature package and quality loaded into or discharged from railway trucks from or to ships or vessels at the said quay. If the Trustees make to other persons a consolidated charge in respect of traffic including in such charge use of the Trustees' railways then this consolidated charge shall be fairly and equitably apportioned so as to determine what deduction should be made therefrom so as to ascertain what is to be paid by the petitioner her tenants and traders who do not want the use of such railways.

18. The Trustees shall if so required convey the petitioner's traffic to or from the said quay over their railways at the same charges and subject to the same tolls as those for the time being payable by other traders.

19. All works and things hereby agreed to be done by the Trustees for the petitioner shall be done to the reasonable satisfaction of the petitioner's engineer or in case the Trustees shall be dissatisfied with his decision to the satisfaction of an engineer to be appointed as aforesaid and shall be completed at or before the time when the new dock or any part thereof is opened or used for traffic.

20. When the Trustees shall have acquired from the present underlessees of the said copper works the interest of such underlessees therein the Trustees shall execute such necessary or proper surrender or deed as may be reasonably required by the petitioner for thenceforth extinguishing or merging all rights and claims against the petitioner arising under or by virtue of such underlease or any of the provisions therein contained.

21. The petitioner shall except as hereinafter mentioned continue liable to pay to Lord Jersey or persons claiming under him the whole of the tonnage rent or sum of one penny reserved by the Jersey lease if and so far as payable without any apportionment thereof and shall indemnify the Trustees accordingly except that if such tonnage rent shall become payable by reason only of any coals culm or other commodities goods wares or merchandizes being carried or borne upon or through some land which is hereby agreed to be assigned to the Trustees and which shall not in pursuance of clause 12 hereof be demised by the Trustees to the petitioner or which shall not be used by her as water access provided under clause 6 the Trustees shall pay the same if and so far as payable and shall indemnify the petitioner accordingly.

22. Like terms to those which were agreed to between the corporation of Swansea and the petitioner by an agreement dated the 28th of January 1886 with reference to the corporation sewer under the said canal shall apply to the new sewer and sewerage works to be authorised by the intended Act.

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23. All the rights and privileges of the petitioner her tenants and traders and of the Trustees under any existing agreement or document entered into between her and the Trustees are to continue vested in her and them respectively except so far as the same are varied or altered by these presents.

24. The petitioner shall not have any right of pre-emption in the event of any land hereby agreed to be sold becoming superfluous land within the meaning of the Lands Clauses Consolidation Act 1845.

25. The said Bill if and when passed into law shall contain a clause ratifying and confirming this agreement which shall be scheduled to the said Bill when passed.

26. In consideration of the foregoing clauses of this agreement the petitioner will not oppose the said Bill during the present session of Parliament.

27. This agreement shall except as to the clauses numbered 26 28 and 29 preceding and following this clause only operate in the event of the said Bill being passed into an Act in its present or some modified form in the present session of Parliament with the clause referred to in clause 25 hereof and if the said Bill shall not be so passed this agreement shall be void and no recital clause or thing herein contained shall in any way prejudice or affect any right or liability of any of the parties hereto.

28. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any alteration therein it shall be in the option of either party to withdraw from this agreement.

29. The Trustees shall pay to the petitioner the sum of 300*l.* towards her solicitor's costs of and in reference to the petition Parliamentary proceedings and the agreement hereby made and also in reference to deeds or documents herein contemplated or provided for.

IN WITNESS whereof the petitioner hath hereunto set her hand and seal and the Trustees have caused their common seal to be affixed the day and year first above written.

The common seal of the Swansea Harbour Trustees was hereunto affixed in the presence of

TALFOURD STRICK
Clerk to the Trustees.

Signed sealed and delivered by the above-named Gertrude Barbara Rich Tennant in the presence of

CLARENCE COLLIER

Colonel

Ascot Wood Cottage

Ascot Berks.

GERTRUDE B. R. TENNANT.

THE FIFTH SCHEDULE.

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THIS AGREEMENT made the 8th day of June 1901 between The SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees") of the one part and The RIGHT HONOURABLE VICTOR ALBERT GEORGE CHILD VILLIERS EARL OF JERSEY G.C.B. G.C.M.G. (hereinafter called "the said earl") of the other part.

WHEREAS a Bill is being promoted in the present session of Parliament by the Trustees to authorise the Trustees to make a new dock and extend the half-tide basin of the south dock and construct new railways to extend the limits of the harbour and for other purposes;

AND WHEREAS among the new railways sought to be authorised in the said Bill is one therein called Railway No. 1 commencing by a junction with the Swansea and Neath Railway of the Great Western Railway at a point thereon 880 yards or thereabouts eastward of the level crossing on the said railway south of the public house known as the Half-way House and terminating at a point 140 yards or thereabouts measured in a south-westerly direction from the south-eastern corner of the English Crown Spelter Works;

AND WHEREAS the said earl is the owner of the Briton Ferry Estate which includes the Crymlyn Burrows and the Crymlyn Bog and is also the owner of the Llansamlet Estate and the Cadoxton Estate including the minerals thereunder subject as to such part or parts thereof as are comprised therein or are now subject thereto to an indenture of lease dated the 31st day of December 1817 and made between the Right Honourable George Earl of Jersey of the one part and George Tennant of the other part as modified by an indenture dated the 26th day of March 1857 and made between Henry Tennant and Charles Tennant of the first part William Henry Smith and John Wormald of the second part and the said Right Honourable George Earl of Jersey of the third part;

AND WHEREAS the said earl as such owner as aforesaid has presented a petition to Parliament praying that he may be heard against the preamble of the said Bill and against such of the clauses and provisions thereof as affect his property rights or interests;

AND WHEREAS it has been agreed between the Trustees and the said earl that he shall withdraw all opposition to the said Bill upon the terms hereinafter contained and that this agreement shall be scheduled to and confirmed by the said Bill:

NOW IT IS HEREBY AGREED by and between the parties hereto as follows:

1. The said earl shall convey to the Trustees in fee simple free from incumbrances except the said lease of 31st December 1817 and subject to the obligation as to payment for furnaces hereinafter mentioned so much of the

A.D. 1901. canals works lands and hereditaments comprised in or now subject to the said lease as so modified as aforesaid as is coloured pink on a plan marked Lord Jersey's Plan No. 1 signed by Talfourd Strick and William Dawes Freshfield and all the estate and interest if any of the said earl in the foreshore and land situate to the south of the said hereditaments coloured pink which land has been formed by the tipping from Lambert's Copper Works. The consideration for the said conveyance shall be £200 to be paid to the said earl by the Trustees within 12 calendar months from the passing of the said Bill and upon such payment the said conveyance shall be made. The sum of 1*d.* per ton made payable under the said lease of the 31st December 1817 in respect of coals culm or other commodities wares or merchandizes carried as therein mentioned shall be payable free from apportionment to the said earl or his heirs or assigns for the time being owners of the reversion under such lease in the lands not hereby agreed to be conveyed. If the Trustees shall acquire the interest created by the said lease in the lands hereby agreed to be conveyed or any part thereof the same shall be free from any liability in respect of the said sum of 1*d.* per ton and the Trustees shall in no way be entitled to receive or be liable to make any payment in respect of the said sum of 1*d.* per ton.

2. The Trustees shall not take or acquire under the compulsory powers of this Bill any of the lands of the said earl situate to the north of the green line or east or south of the dotted pink line on the plan marked Lord Jersey's Plan No. 2 also signed by the said Talfourd Strick and William Dawes Freshfield without the consent in writing of the said earl and the limits of deviation in the said Bill shall be altered accordingly.

3. If the Trustees shall construct the said Railway No. 1 proposed to be authorised by the said Bill they shall preserve the Half-way House crossing under Railway No. 1 for the use of the said earl and all persons authorised by him to use the same. And in the like event the Trustees will carry Railway No. 1 over the said earl's road at the point marked A on Plan No. 2 or at such other point as may be agreed with suitable and convenient approaches thereto by a bridge 40 feet span (on the square) and 14 feet high or of such other height as may be agreed between the Trustees and the said earl. In the event of Railway No. 1 not being made but the suggested junction lines with the Great Western Railway and the Rhondda and Swansea Bay Railway being made elsewhere than as shown on the deposited plans then the Trustees will construct and maintain a similar bridge with suitable and convenient approaches thereto to carry the said earl's private road coloured brown on Plan No. 2 at the spot where the junction lines cross such road over such junction lines such bridge and approaches to be for the use of the said earl and all persons by him authorised to use the same.

4. If the Trustees shall construct the said Railway No. 1 they shall construct and maintain a level crossing 30 feet wide with wood pitching between the rails at the point marked B on Plan No. 2 or at such other point as may be agreed on between the trustees and the said earl for the use of the said earl and all persons by him authorised to use the same and shall make and maintain proper gates at the said level crossing.

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5. If the Trustees shall construct the said Railway No. 1 they shall construct and maintain in such position under their railway between the points X and Y on Plan No. 2 as the said earl may request three culverts of 3 feet in diameter each of such culverts to be for the exclusive use of the said earl and any persons authorised by him to use the same.

6. The Trustees will if desired by the said earl and at his expense construct and maintain for the use of the said earl and all persons authorised by him to use the same a junction with the railway of the Trustees at the point N on Plan No. 2 or at such other point as may be agreed on between the Trustees and the said earl and also a junction with their railways at the point S on Plan No. 2 or at such other point as may be agreed on between the Trustees and the said earl and will carry out such junction to the boundary of their lands so as to enable the said earl to connect therewith. IT IS HEREBY AGREED that for the purposes of sec. 76 of the Railways Clauses Act 1845 as regards communications with the railways of the Trustees other than those specially provided for by this agreement the Trustees shall be deemed to be a railway company and there shall be charged to the said earl for the conveyance of traffic over the railways of the Trustees the same mileage rates as are chargeable to traders using the same railways.

7. The said earl shall be at liberty at any time hereafter at his own expense to construct and use and maintain one level crossing and one culvert across the railways of the Trustees between the points D and E shown on the said Plan No. 2 the positions of such level crossing and culvert to be subject to the reasonable approval of the Trustees' engineer for the time being.

8. The Trustees shall pay to the said earl a toll of one penny per ton on all traffic which shall be carried along the railways of the Trustees or any part thereof to or from the English Crown Spelter Works or any extension of such works except that no such toll shall be payable by the Trustees on slag cinders or refuse of any description produced at such works or any extension of such works or on traffic in respect of which any toll wayleave or charge is or shall be payable to the said earl by the Trustees or any company body or person by virtue of any other agreement or document.

9. If any land of the said earl at present above high-water mark and situate between the point H on the Plan No. 2 and the site of the proposed embankment of the Trustees shall in consequence of the construction of the said embankment be washed away or encroached upon by the sea the Trustees shall pay to the said earl compensation the amount of such compensation in the event of difference to be settled by arbitration. This clause shall apply as often as the case shall happen but the Trustees shall not be liable to pay twice in respect of the same area of land.

10. If the Trustees shall at any time within ten years from the date hereof require any further land of the said earl within their limits of deviation as modified by this agreement the said earl shall for the consideration following convey the same to the Trustees in fee simple free from incumbrances but subject as to the lands held by the English Crown Spelter Company the

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Swansea Wagon Company and Messrs. Elford to the existing leases thereof. The consideration for such conveyance shall be as follows:—

(1) For land above high-water mark of ordinary spring tides including land which has been added to the land shown as specifically demised on the plan on the lease to predecessors in title of the English Crown Spelter Company but not including the lands shown as specifically demised on the last-mentioned plan nor the lands demised to the Swansea Wagon Company nor the lands demised to Messrs. Elford the price of £600 per acre and so in proportion for any less quantity than an acre;

(2) For land above high-water mark of ordinary spring tides shown as specifically demised on the plan on the said lease to the predecessors in title of the said English Crown Spelter Company or demised to the said Swansea Wagon Company or to the said Messrs. Elford the price of 30 years' purchase of the rent payable under the lease thereof the total rent being treated as rateably apportionable in respect of all the land released according to the area thereof;

(3) For any land belonging to the said earl below high-water mark of ordinary spring tides a price to be fixed in case of difference by arbitration.

11. In regard to furnaces now or hereafter to be upon the land hereby agreed to be conveyed and which shall be used for smelting copper lead arsenic silver or gold (which purposes alone are and shall be deemed to be injurious manufactures within the meaning of the said indenture of 26th day of March 1857) a rentcharge of £5 per annum per furnace shall be payable to the said earl or his heirs or assigns for the time being owners of the reversion under the said lease of the 31st day of December 1817 in the lands not hereby agreed to be sold. Such rentcharge shall be secured by the covenant of the Trustees and a charge upon the land hereby agreed to be conveyed and the interests of the Trustees therein for the time being in such manner as shall be reasonably required on behalf of the said earl in continuation or substitution for a like rent or rentcharge payable under the said indenture of the 26th day of March 1857.

12. The said earl not to have any right of pre-emption in the land coloured pink on plan No. 1 in the event of any part of it becoming superfluous land within the meaning of the Lands Clauses Consolidation Act 1845.

13. Any matter hereby agreed to be referred to arbitration shall be referred to the arbitration of two arbitrators in accordance with the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force.

14. This agreement is conditional upon the said Bill as hereby modified and with the addition of a clause confirming this agreement becoming law during this present session of Parliament and if the said Bill as so modified and added to shall not become law during the said session these presents shall become void. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any alteration therein it shall be in the option of either party to withdraw from this agreement.

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IN WITNESS whereof the Trustees have caused their common seal to be hereunto affixed and the said earl hath hereunto set his hand and seal the day and year first above written.

The common seal of the Swansea Harbour Trustees was hereunto affixed in the presence of
TALFOURD STRICK,
Clerk to the Trustees.



Signed, sealed and delivered by the Right Honourable Victor Albert George Child Villiers Earl of Jersey G.C.B. G.C.M.G. in the presence of
ALFRED TURNER
55 Lowndes Square
London
Butler.

JERSEY:



THE SIXTH SCHEDULE.

AN AGREEMENT made this 13th day of June 1901 between The ENGLISH CROWN SPELTER COMPANY LIMITED (hereinafter called "the company") and The SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees") whereby it is agreed as follows (that is to say) :—

1. In consideration of three thousand seven hundred and fifty pounds (£3,750) the company, to assign to the Trustees for the residue of the term of years created by the lease under which the company hold from Lord Jersey dated the 12th day of February 1866 and for any further term of years by any new lease or agreement granted or to be granted to the company by Lord Jersey All land and foreshore held acquired used or enjoyed by the company under or by virtue of their said lease or agreement and situate southward or seaward of the land coloured yellow on the plan signed by Ernest H. Leeder on behalf of the company and Talfourd Strick on behalf of the Trustees The said sum of three thousand seven hundred and fifty pounds (£3,750) to be paid to the company when the said land and foreshore (which are together hereinafter referred to as "the described land") or any part thereof shall be taken and occupied by the Trustees or at latest within three years after the passing of the Act.
2. The Trustees at their expense to make a siding between the points marked A and B on the said plan with two loops sufficient for clearing six trucks on each loop. The said siding to be at such a level that the tops of trucks thereon will be sufficiently below the level of the existing furnace floors to admit of slag cinders and refuse of every description from such furnaces being tipped direct therein from barrows or trams. The Trustees to connect the said siding with their railway the company providing free of expense such of the company's lands as may be required for the purpose

A.D. 1901. The said siding and loops to be laid to the reasonable satisfaction of the company's engineer or of an engineer to be appointed by the President of the Institution of Civil Engineers and to be the property of the company. In addition to removal of the slag cinders and refuse of every description the said siding and loops may be used by the company for the purposes of their business generally and the Trustees shall grant the company reasonable facilities for their so doing.

3. The Trustees to remove during the continuance of the said lease of 1866 or any new lease to be granted as aforesaid not exceeding however a period of sixty years from the present time all slag cinders and refuse of every description from the company's present works or any future extension thereof on the land coloured yellow on the said plan the company at its own expense loading such slag cinders and refuse into trucks on the said siding the trucks to be provided by and at the expense of the Trustees as and when required by the company and the company paying the Trustees for the removal at the rate of one penny per ton. The removal of such slag cinders and refuse of every description to be performed as and when required to the reasonable satisfaction of the company's manager for the time being or in the event of dispute of an arbitrator to be appointed in the usual way.

4. No apportionment of rent to be made in respect of the described land to be assigned to the Trustees but the company to continue to pay the full rent or rents reserved or to be reserved by the said lease new lease or agreement.

5. Section 34 of the Swansea Harbour Act 1894 to be suspended during the period of five years mentioned in clause 7 hereof and if this agreement shall not be cancelled under clause 7 hereof then at the expiration of the said period of five years mentioned in clause 7 to be repealed.

6. The Trustees to pay the company an annual rent of one shilling for easement for laying and maintaining a sewer in or near the line or direction of the proposed sewer on the Trustees deposited plans during the continuance of the said lease new lease or agreement as aforesaid.

7. The Trustees to be at liberty by notice in writing to the company to cancel this agreement at any time within five years from the date of the passing of the Act and if the said sum of three thousand seven hundred and fifty pounds (£3,750) shall have been paid to the company the company shall forthwith on receipt of such notice repay the said sum to the Trustees.

8. The company to continue to tip their slag cinders and refuse on the described land until the operations of the Trustees shall interfere with their so doing but if it shall be necessary for the company or if the Trustees shall request the company to tip elsewhere than on the described land then the company shall tip where requested by the Trustees and the Trustees shall pay any additional cost thereby incurred by the company the amount in case of dispute to be settled by arbitration. Provided always that if the Trustees shall at any time or from time to time require the company to load the slag cinders and refuse into truck on the said siding the company shall load the same into truck accordingly and pay the Trustees for the removal thereof at the rate aforesaid.

9. The Trustees shall within three months of the date of this agreement pay the company the sum of £180 towards their costs.

A.D. 1901.

10. If the Trustees require the additional land coloured yellow and hatched blue on the said plan containing 2a. 3r. 35p. or thereabouts the company will sell the same to the Trustees for the residue of the term of years created by the lease under which the company held from Lord Jersey dated the 12th day of February 1866 and for any further term of years by any new lease or agreement granted or to be granted to the company by Lord Jersey for the sum of seventeen hundred and fifty pounds (£1,750) the Trustees paying an apportioned ground rent of eighty-three pounds fifteen shillings (£83 15s.) the said sum of £1,750 to be paid by the Trustees and be subject to be repaid by the company in the same manner as the sum of £3,750 is to be paid and is subject to be repaid under clauses 1 and 7 hereof.

11. The limits of deviation to be altered as shown on the said plan by red dotted lines.

12. The Trustees to provide on the land coloured yellow and hatched blue for the use of the company free of expense and wayleave charges a proper connection with the Rhondda and Swansea Bay Railway for the existing works siding in lieu of the existing connection if it be disturbed such connection to be laid to the satisfaction of the company's engineer or in case of dispute of an arbitrator duly appointed reasonable facilities also being given the company for properly and conveniently working their traffic to and from the Rhondda and Swansea Bay Railway.

13. The company shall not have any right of pre-emption in the event of any land hereby agreed to be sold becoming superfluous land within the meaning of the Lands Clauses Consolidation Act 1845.

14. This agreement is made subject to such alterations as Parliament may think fit to make therein and also to the above Bill becoming law in the present session of Parliament with the addition of a clause confirming this agreement and if not so confirmed this agreement excepting clause 9 hereof shall be void.

In the event of either House of Parliament making any material alteration in this agreement it shall be competent for either party hereto to withdraw from the same.

IN WITNESS whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Swansea Harbour Trustees was
hereunto affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

The common seal of the English Crown Spelter Company
Limited was hereunto affixed in the presence of

EDMUND A. PONTIFEX

SAMUEL LOVERIDGE

E. C. LEAVER

Secretary.

Directors.

L.S.

L.S.

THE SEVENTH SCHEDULE

HEADS OF AGREEMENT (No. 1) between The SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees"), The GREAT WESTERN RAILWAY COMPANY (hereinafter called "the Great Western Company") and The RHONDDA AND SWANSEA BAY RAILWAY COMPANY (hereinafter called "the Rhondda Company").

WHEREAS the Trustees are promoting in the present session of Parliament a Bill for the construction of a new dock lock communication passage railways and other works at Swansea; And whereas the Great Western Company have presented a petition against the said Bill; And whereas with a view to meet such opposition it has been mutually agreed as follows:—

1. The Railways Nos. 1 and 2 and all powers in connection therewith to be struck out of the Bill.

2. In substitution for the said Railways Nos. 1 and 2 the Trustees shall at their own expense construct and maintain the railway (hereinafter called "the substituted railway") connecting the lines of the Great Western Company and Rhondda Company respectively with the new dock in the line and manner shown on the accompanying plan signed by Augustus Oswald Schenk on behalf of the Trustees James Charles Inglis on behalf of the Great Western Company and William Sutcliff Marsh on behalf of the Rhondda Company and which is hereinafter referred to as "the signed plan".

3. The Trustees to construct the substituted railway where it forms a junction with the Great Western Railway or is situate on the lands of the Great Western Company with all necessary signals works conveniences and appliances to the reasonable satisfaction of the engineer of the Great Western Company or in case of dispute between the Great Western Company and the Trustees then to the satisfaction of an engineer to be appointed by the President for the time being of the Institution of Civil Engineers and to make good any loss or damage sustained by the Great Western Company during the construction of the substituted railway. The Great Western Company to afford all reasonable facilities for constructing the same and for making the said junction. Provided always that if the Great Western Company so elect they may themselves construct work and maintain the necessary works at the expense of the Trustees.

4. The Trustees to bear any expense attendant upon any additional or altered signalling arrangements and appliances rendered necessary by the said junction with the Great Western Railway and the cost of working and maintaining such junctions and signals shall be borne by the Trustees.

5. In consideration of the payments to be made to the Rhondda Company by the Trustees under an agreement of even date the Rhondda Company shall grant to the Great Western Company the free use at all times of the crossing by the substituted railway of the Rhondda Company's railway as shown on

the signed plan for traffic to and from the new dock and works constructed or lands acquired under the provisions of the intended Act or this agreement.

6. The Rhondda Company shall at all times afford all proper facilities for the working of the traffic of the Great Western Company over the said crossing and the train which first presents itself at the signals protecting such crossing shall have precedence and no priority shall be given to any train whether passenger goods mineral or otherwise.

7. The Trustees will construct the new dock or part thereof to a point one hundred and twenty-five yards east of the frontage to be taken by the Great Western Company as hereinafter provided with the water access to the said point from the lock throughout not less than one hundred and twenty-five yards in width except opposite projecting jetties and also a lock with all lines of rails gates locks cranes conveniences and appliances necessary for the accommodation of shipping and for the convenient loading and unloading of traffic at the new dock and for the conveyance of traffic to and from the new dock from and to the railway of the Great Western Company the outer sill of the lock to be laid at a depth of not less than thirty-six feet below the level of high water ordinary spring tides high water level ordinary spring tides being taken as five feet below the coping of entrance to North Dock Lock Swansea Harbour and the length not to be less than seven hundred feet and the width not less than seventy-five feet together with the main lines of railway on the high level coloured green upon the signed plan and the lines of rails round the new dock coloured blue thereon for traffic to and from the new dock for such substituted lines round the dock as may be agreed between the Great Western Company and the Trustees or settled by arbitration as hereinafter provided affording equal accommodation to the traffic of the dock and the Great Western Company.

8. The Trustees shall also construct as shown on the signed plan and maintain the water communication between the new dock and the Prince of Wales Dock of a depth not less than the deepest part for the time being of the Prince of Wales Dock and also Railway No. 3 and such water communication shall be constructed and opened on or before the opening of the new dock or part thereof as described in the preceding clause.

9. Upon the opening for traffic of the new dock or part thereof as aforesaid and other works hereinbefore described and provided adequate powers and provisions for giving effect to this agreement are obtained by the Trustees in the present or some future session of Parliament the Trustees will grant and the Great Western Company will accept a lease in perpetuity subject to the conditions hereinafter mentioned of one thousand feet of frontage on the north side of the new dock and the land at the back thereof coloured pink on the said plan together with the jetties hereinafter mentioned and the Great Western Company will provide on the said land coloured pink or on the said jetties four proper and efficient coal hoists and necessary staith sidings and approach gantries the said four hoists and staith sidings to be ready for use on or before the opening of the new dock or part thereof as aforesaid and other works hereinbefore described provided that the Trustees shall construct a pitched slope masonry jetties and timber dolphins alongside such frontage

A.D. 1901. in the manner and position shown on the signed plan suitable in all respects for the erection thereon and working of the said hoists together with the necessary gantries for screenings roads.

The Trustees will at the expense of the Great Western Company afford to that company all proper facilities for putting in the foundations or other works for the erection of the said hoists during the construction of the new dock or part thereof as aforesaid.

The lease hereinbefore referred to shall come into operation on the completion as aforesaid and the opening for traffic of the new dock or part thereof and other works hereinbefore described.

10. The yearly rent for the said one thousand feet frontage and land coloured pink shall be an annual sum made up of a payment of three halfpence per ton of the total quantity of coal coke patent fuel minerals mineral substances goods wares merchandizes articles and commodities of every description which shall be shipped or unshipped yearly at the one thousand four hundred and sixty feet frontage of the Great Western Company at the Prince of Wales Dock and the extension thereof and at the said one thousand feet frontage of the Great Western Company at the new dock over and above one equal fifth part of the total quantity of coal coke patent fuel minerals mineral substances goods wares merchandizes articles and commodities of every description which shall have been shipped or unshipped at the said one thousand four hundred and sixty feet frontage of the Great Western Company at the Prince of Wales Dock and the extension thereof during the period of five years ending on the thirty-first December immediately preceding the opening of the new dock or part thereof as aforesaid. Provided that such yearly rent shall not in any one year exceed four thousand pounds. Provided also that if and when the said yearly rent payable by the Great Western Company as aforesaid shall for a period of three consecutive years amount to four thousand pounds for each of such three years then the Great Western Company shall in lieu of the said yearly rent payable by the Great Western Company as aforesaid for a period of twenty-one years next after the said period of three years pay the Trustees for each and every year of the said twenty-one years as yearly rent the sum of four thousand pounds and after the expiration of the said period of twenty-one years the yearly rent shall be an annual sum made up as aforesaid. The said rent to be payable on the first February in every year in respect of the preceding twelve months ended thirty-first December.

11. The Great Western Company to have the exclusive right to berth vessels alongside the said one thousand feet frontage and the southern ends of the said jetties in single tier broadside-on with power subject to the reasonable rules and regulations of the harbour master for such vessels to overlap the adjoining frontage at each end of the said one thousand feet frontage and to levy and receive all wharfage rates rents and tipping and other charges in respect both of the said one thousand feet frontage the said jetties and of the said land coloured pink.

12. The Great Western Company to be at liberty to construct and erect to the reasonable satisfaction of the engineer of the Trustees upon the frontage

and land to be leased to them not required for the erection of the said four hoists and works to be constructed by the Great Western Company such lines of railway sidings tips machinery and other works buildings and conveniences as may be necessary so as to enable the Great Western Company fully to utilise the said frontage and land for all purposes in connection with their business and from time to time to alter vary and remove such sidings tips machinery and other works buildings and conveniences and to substitute others therefor. A.D. 1901.

13. The Trustees during the continuance of the lease to maintain at their own expense the dock lock and water communication and the waterway leading to the dock and the water in the dock adjoining the said frontage and in the said communication at the depths aforesaid and also all walls approaches and lines of rails belonging to them together with the said frontage jetties gantries for screenings roads and dolphins and all locks quay walls and other works conveniences and appliances which may be necessary for the full and efficient maintenance and working of the dock and water communication and the accommodation of shipping and traffic passing to or from the same and for the enjoyment by the Great Western Company of the said frontage land and jetties coloured pink on the signed plan and the Great Western Company shall maintain all works to be constructed by them at their expense.

14. The Great Western Company shall be at liberty to lay down and place in through over or upon the said frontage jetties and gantries and land comprised in the said lease or in through over or upon the adjoining land of the Trustees such hydraulic and other pipes and machinery as may be necessary or convenient to enable the traffic of the Great Western Company to be worked with economy and dispatch and the Trustees shall from time to time afford to the Great Western Company all necessary facilities for the construction or repair of the said pipes and machinery and for obtaining a supply of water to work the said machinery. Provided that the Great Western Company may from time to time require the Trustees and the Trustees shall upon receiving six months' notice from the Great Western Company requiring them so to do supply at a reasonable price all water that may be required for working the said machinery or works in connection therewith in an efficient manner. Provided always that during the time the Trustees supply water to work the said machinery the Great Western Company shall keep such machinery in a sufficient state of repair to prevent undue waste.

15. The Trustees reserve to themselves the right to erect and maintain in or on the said frontage such mooring posts rings lamp posts and other devices and such hydraulic and other pipes machinery and other conveniences as may be necessary for the proper and convenient working of the dock and works and also free liberty to lay fix and maintain in on and along that part of the said land coloured pink on the signed plan as is hatched black the two lines of rails and the roadway respectively shown on the same plan. And also free liberty at all reasonable times to their officers and servants and all other persons lawfully engaged in working or using the dock to pass and re-pass

A.D. 1901. over and along the margin of the dock adjoining the said frontage such margin not to exceed five feet in width. And also free liberty at all reasonable times to their officers and servants and all other persons lawfully using the new dock with carriages wagons engines and horses and for all purposes to pass and re-pass over the part of the said land coloured pink on the signed plan as is hatched black. But the Great Western Company are not to be inconvenienced in the conduct of their business or the enjoyment of the said frontage to any greater extent than may be unavoidable and in case of difference as to the reasonable exercise by the Trustees of the rights and liberty so reserved as aforesaid the same to be referred to arbitration.

16. The Trustees shall construct maintain work and signal such and so many junctions between the Great Western Company's staith sidings and the substituted railway and the running lines coloured green to be constructed by the Trustees as may be necessary or convenient for the economical working of the traffic of the Great Western Company.

If in the construction by the Great Western Company of staith sidings from the Trustees' lines to the frontage to be leased to the Great Western Company it shall be found desirable to vary the position now laid down of the land coloured pink the Trustees and the Great Western Company shall be empowered to make such arrangements with respect to "land for sidings" as may be agreed on between the Trustees and the Great Western Company.

17. The Trustees to provide maintain watch light and signal at their own expense during the continuance of the said lease on their own land within the area (unless otherwise agreed) indicated on the signed plan for the exclusive use of the traffic carried by the Great Western Company for shipment at their said frontage reception and storage sidings in proportion to the sidings provided by the Trustees for the use of the Great Western Company under the agreement between the Trustees and the Great Western Company scheduled to the Swansea Harbour Act 1876 and subsequently and all further reception and storage sidings which may be necessary for the Great Western Company's said traffic shall be provided by the Great Western Company on that company's lands as and when required.

18. The Great Western Company to have the use in common with the Trustees and others authorised by them of the Trustees' railways coloured green on the signed plan free of charge and of the railways coloured blue at the lowest charge from time to time made to any other company or trader for similar accommodation.

19. Neither the Great Western Company nor the Trustees or their respective lessees or tenants of frontage or land adjacent to frontage at the new dock shall ship coal at the new dock on lower terms than those charged by the other of them and in case of difference between the Great Western Company and the Trustees as to such charges the same shall be settled by arbitration.

20. The Trustees shall not let any frontage or land adjacent to frontage to the new dock and they shall effectually prevent any company firm or person

sub-letting any such frontage or land to any other railway company on more favourable terms than those made with the Great Western Company and the Trustees shall not levy or charge in respect of vessels or goods using or loaded or unloaded at the quays included in any lease granted in pursuance of this agreement any higher dues or rates than they shall for the time being charge or levy in respect of similar vessels or goods on any other portion of the new dock.

The Great Western Company shall not assign underlet or part with the possession of the said frontage jetties and land coloured pink or any part thereof respectively without the consent in writing of the Trustees unless such consent shall be arbitrarily or unreasonably withheld.

21. The Trustees shall not ship coal or allow coal to be shipped at the new dock or any part thereof until they shall have constructed and opened the part of the new dock and other works hereinbefore described.

22. Nothing in the three preceding clauses shall affect or prejudice the rights and privileges of Gertrude Barbara Rich Tennant her tenants licencees and traders under an agreement scheduled to the intended Act or any lease to be granted thereunder.

23. All usual and necessary clauses to be inserted in the lease and protective clauses to be inserted in the Bill with regard to interference with or with access to the Great Western Company's railways works and lands.

24. It shall not be obligatory upon the Trustees to construct any of the new works authorised by the Bill and the Great Western Company shall not be entitled to recover any damages against the Trustees by reason of their failing to construct or complete the new dock or any part thereof and works or any of them but if the new dock or part thereof as aforesaid is not opened within six years from the time limited for the completion thereof the Great Western Company shall be at liberty to move any buildings or work which they may have erected or made in or upon the said one thousand feet frontage and land coloured pink.

25. All traffic brought by the Great Western Railway for shipment at hoists in the hands of the Trustees at the new dock to be given by the Great Western Company equal dispatch to traffic destined for hoists of the Great Western Company.

26. All differences (if any) which shall arise between the Trustees the Great Western Company and the Rhondda Company or any of them touching any of the matters aforesaid or otherwise relating thereto shall be referred to arbitration and provision for the purpose shall be made by the lease and the arbitration shall be as nearly as can be in accordance with the Arbitration Act 1889 or any statutory modification thereof.

27. This agreement is made subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in this agreement it shall be competent to either of the parties hereto to withdraw the same.

A.D. 1901.

IN WITNESS whereof the parties hereto have hereunto set their respective common seals the 13th day of June one thousand nine hundred and one.

The common seal of the Trustees was hereunto affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

L.S.

The common seal of the Great Western Company was hereunto affixed in the presence of

G. K. MILLS

(Secy.).

L.S.

The common seal of the Rhondda Company was hereunto affixed in the presence of

H. S. LUDLOW

Secretary.

L.S.

THE EIGHTH SCHEDULE.

HEADS OF AGREEMENT No. 2 between The SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees") The GREAT WESTERN RAILWAY COMPANY (hereinafter called "the Great Western Company") and The RHONDDA AND SWANSEA BAY RAILWAY COMPANY (hereinafter called "the Rhondda Company").

WHEREAS the Trustees are promoting in the present session of Parliament a Bill for the construction of a new dock lock water communication railways and other works at Swansea:

AND WHEREAS the Rhondda Company have presented a petition against the said Bill:

AND WHEREAS with a view to meet such opposition it has been mutually agreed as follows:—

1. Railways Nos. 1 and 2 and all powers in connection therewith to be struck out of the Bill.

2. In substitution for the said Railways Nos. 1 and 2 the Trustees shall at their own expense construct and maintain the railway (hereinafter called "the substituted railway") connecting the lines of the Great Western Company and Rhondda Company respectively with the new dock in the line and manner shown on the accompanying plan signed by Augustus Oswald Schenk on behalf of the Trustees James Charles Inglis on behalf of the Great Western Company and William Sutcliffe Marsh on behalf of the Rhondda Company and which is hereinafter referred to as "the signed plan."

A.D. 1901.

3. The Trustees to construct the substituted railway where it forms junctions with the Rhondda Railway or is situate on the lands of the Rhondda Company with all necessary signals works conveniences and appliances to the reasonable satisfaction of the engineer of the Rhondda Company or in case of dispute between the Rhondda Company and the Trustees then to the satisfaction of an engineer to be appointed by the President for the time being of the Institution of Civil Engineers and to make good any loss or damage sustained by the Rhondda Company during the construction of the substituted railway The Rhondda Company to afford all reasonable facilities for constructing the same and for making the said junctions Provided always that if the Rhondda Company so elect they may themselves construct work and maintain the necessary works at the expense of the Trustees.

4. The Trustees to bear any expense attendant upon any additional or altered signalling arrangements and appliances rendered necessary by the said junctions with the Rhondda Railway and the cost of working and maintaining such junctions and signals shall be borne by the Trustees.

5. The Trustees to pay the Rhondda Company $\frac{5}{32}$ nds of a penny per ton on all traffic conveyed over the substituted railway from or to the Great Western Railway to or from the new dock and works constructed or lands acquired under the provisions of the intended Act or this agreement with a maximum of £750 per annum for the first five years and a maximum of £1,000 per annum afterwards and for the purpose of calculating the amount payable under this clause in addition to all traffic actually conveyed over the substituted railway all coal (except coal for fuel works) carried on the Great Western Railway and coming from places east of the said junctions to the new dock and works constructed or lands acquired under the provisions of the intended Act or this agreement shall be deemed to have been conveyed over the substituted railway whether the same shall be so conveyed or not.

6. Returns to be made by the Trustees showing the amount of traffic upon which the said toll of $\frac{5}{32}$ nds of a penny is payable and the Rhondda Company to have reasonable access to the books of the Trustees and the Great Western Company for the purpose of verifying such returns The returns to be made and the amounts payable by the Trustees to the Rhondda Company to be paid by the Trustees half-yearly to the Rhondda Company on the 1st January and 1st July.

7. The Trustees will construct the new dock or part thereof to a point 125 yards east of the frontage which may be taken by the Rhondda Company as hereinafter provided with the water access to the said point from the proposed lock throughout not less than 125 yards in width except opposite projecting jetties and also a lock with all lines of rails gates locks cranes conveniences and appliances necessary for the accommodation of shipping and for the convenient loading and unloading of traffic at the new dock and for the conveyance of traffic to and from the new dock from and to the railway of the Rhondda Company the outer sill of the lock to be laid at a depth of not less than 36 feet below the level of high-water ordinary spring tides high-water level ordinary spring tides being taken as five feet below the coping of entrance to North Dock Lock Swansea Harbour and the length not to be less

A.D. 1901. than 700 feet and the width not less than 75 feet together with the main lines of railway on the high level coloured green upon the signed plan and the lines of rails round the new dock coloured blue thereon for traffic to and from the new dock or such substituted lines round the dock as may be agreed between the Rhondda Company and the Trustees or settled by arbitration as hereinafter provided affording equal accommodation to the traffic of the dock and the Rhondda Company.

8. The Trustees shall also construct as shown on the signed plan and maintain the water communication between the new dock and the Prince of Wales Dock of a depth not less than the deepest part for the time being of the Prince of Wales Dock and also Railway No. 3 and such water communication shall be constructed and opened on or before the opening for traffic of the new dock or part thereof as described in the preceding clause.

9. The Rhondda Company shall have the option of taking on lease in perpetuity at £4 per lineal foot frontage the 475 feet of the frontage on the southern side of the new docks shown on the signed plan with the land at the back thereof coloured pink on the signed plan with power to erect thereon one or two proper and efficient coal hoists and necessary staith sidings and the Trustees shall construct a pitched slope and masonry jetties and timber dolphins alongside such 475 feet frontage in the manner and position shown on the signed plan suitable in all respects for the erection thereon and working of the said hoists together with the necessary gantries for screenings roads.

If the said option is exercised the Trustees will at the expense of the Rhondda Company afford to that company all proper facilities for putting in the foundations or other works for the erection of the said hoists during the construction of the new dock or part thereof as aforesaid.

If they take such frontage the Rhondda Company shall have a further option of surrendering the 400 feet frontage and lands held by them at the Prince of Wales Dock under the agreement scheduled to the Rhondda and Swansea Bay Railway Act 1890. The Trustees in that event to pay to the Rhondda Company the value at the time of surrender of the coal hoist with the staith sidings and other works erected by the Rhondda Company in connection therewith such value to be settled by arbitration in case of difference.

The said options to cease if not exercised before or within twelve calendar months after the opening for traffic of the new dock or part thereof as aforesaid.

10. If the Rhondda Company exercise the said option of taking the said 475 feet frontage at the new dock the following provisions shall take effect viz.:

(1) The Trustees will grant and the Rhondda Company will accept subject to the conditions hereinafter mentioned a lease of the 475 feet frontage on the southern side of the new dock and the land at the back thereof coloured pink on the signed plan and the two jetties extending from the said frontage and hereinafter referred to as "the said jetties" and the Rhondda Company will provide on one of the said jetties or in such

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other position as shall be agreed between the Trustees and the Rhondda Company one proper and efficient coal hoist and necessary staith sidings and approach gantries to be ready for use within two years after the opening for traffic of the new dock or part thereof as aforesaid:

(2) The lease shall commence on and from the completion and opening for traffic of the new dock or part thereof as aforesaid or from the date the said option is exercised whichever shall last happen and shall continue in perpetuity:

(3) The Rhondda Company shall pay the Trustees for the said frontage land and jetties the annual rent or sum of one thousand nine hundred pounds by half-yearly payments on the 1st January and the 1st July in every year the first half-yearly payment of the said rent or a proportionate part thereof to be made on such one of the said half-yearly days as shall happen next after the opening for traffic of the new dock or part thereof as aforesaid or if the said option shall not be exercised until after such opening then at the expiration of twelve months after the opening:

(4) The Rhondda Company to have the exclusive right to berth vessels alongside the said 475 feet frontage and the northern ends of the said jetties in single tier broadside on with power (subject to the reasonable rules and regulations of the harbour master) for such vessels to overlap the adjoining frontage at each end of the said 475 feet frontage but on the western end not more than 100 yards and to levy and receive all wharfage rates rents and tipping and other charges in respect of the said 475 feet frontage the said jetties and of the said land coloured pink:

(5) The Rhondda Company to be at liberty to construct and erect to the reasonable satisfaction of the engineer of the Trustees upon the frontage and land to be leased to them not required for the erection of the hoist or hoists and works to be constructed by the Rhondda Company such lines of railway sidings tips machinery and other works buildings and conveniences as may be necessary so as to enable the Rhondda Company fully to utilise the said frontage and land for all purposes in connection with their business and from time to time to alter vary and remove such lines of railway sidings tips machinery and other works buildings and conveniences and to substitute others therefor:

(6) The Trustees during the continuance of the lease to maintain at their own expense the dock lock and water communication and the waterway leading to the dock and the water in the dock adjoining the said frontage and in the said communication at the depths aforesaid and also all walls approaches and lines of rails belonging to them together with the said frontage jetties gantries for screenings roads and dolphins and all locks quay walls and other works conveniences and appliances which may be necessary for the full and efficient maintenance and working of the dock and water communication and the accommodation of shipping and traffic passing to or from the same and for the enjoyment by the Rhondda Company of the said land coloured pink on the signed plan and the Rhondda Company shall maintain all works to be constructed by them at their expense:

A.D. 1901.

(7) The Rhondda Company shall be at liberty to lay down and place in through over or upon the said frontage jetties and gantries and land comprised in the said lease or in through over or upon the adjoining land of the Trustees such hydraulic and other pipes and machinery as may be necessary or convenient to enable the traffic of the Rhondda Company to be worked with economy and dispatch and the Trustees shall from time to time afford to the Rhondda Company all necessary facilities for the construction or repair of the said pipes and machinery and for obtaining a supply of water to work the said machinery. Provided that the Rhondda Company may from time to time require the Trustees and the Trustees shall upon receiving six months' notice from the Rhondda Company requiring them so to do supply at a reasonable price all water that may be required for working the said machinery or works in connection therewith in an efficient manner. Provided always that during the time the Trustees supply water to work the said machinery the Rhondda Company shall keep such machinery in a sufficient state of repair to prevent undue waste:

(8) The Trustees reserve to themselves the right to erect and maintain in or on the said frontage such mooring posts rings lamp posts and other devices and such hydraulic and other pipes machinery and other conveniences as may be necessary for the proper and convenient working of the dock and works and also free liberty to lay fix and maintain in on and along that part of the said land coloured pink on the signed plan as is hatched black the two lines of rails and the roadway respectively shown on the signed plan. And also free liberty at all reasonable times to their officers and servants and all other persons lawfully engaged in working or using the dock to pass and re-pass over and along the margin of the dock adjoining the said frontage such margin not to exceed five feet in width. And also free liberty at all reasonable times to their officers and servants and all other persons lawfully using the new dock with carriages wagons engines and horses and for all purposes to pass and re-pass over the part of the said land coloured pink and hatched black on the signed plan but the Rhondda Company are not to be inconvenienced in the conduct of their business or the enjoyment of the said frontage to any greater extent than may be unavoidable and in case of difference as to the reasonable exercise by the Trustees of the rights and liberty so reserved as aforesaid the same to be referred to arbitration:

(9) The Trustees shall construct maintain work and signal such and so many junctions between the Rhondda Company's staith sidings and the substituted railway and the running lines coloured green to be constructed by the Trustees as may be necessary or convenient for the economical working of the traffic of the Rhondda Company:

If in the construction by the Rhondda Company of staith sidings from the Trustees' lines to the frontage to be leased to the Rhondda Company it shall be found desirable to vary the position now laid down of the land coloured pink the Trustees and the Rhondda Company shall be

empowered to make such arrangements with respect to "land for sidings" as may be agreed on between the Trustees and the Rhondda Company: A.D. 1901.

- (10) The Trustees to provide maintain watch light and signal at their own expense during the continuance of the said lease on their own land reception and storage sidings to accommodate not less than 225 wagons for the exclusive use of the traffic carried by the Rhondda Company for shipment at the said 475 feet frontage within the area (unless otherwise agreed) indicated on the signed plan. All further reception and storage sidings which may be necessary for the Rhondda Company's said traffic shall be provided by the Rhondda Company on the Rhondda Company's lands as and when required:
- (11) The Rhondda Company to have the use in common with the Trustees and others authorised by them of the Trustees' railways coloured green on the signed plan free of charge and of the railways coloured blue at the lowest charge from time to time made to any other company or trader for similar accommodation:
- (12) Neither the Rhondda Company nor the Trustees or their respective lessees or tenants of frontage or land adjacent to frontage at the new dock shall ship coal at the new dock on lower terms than those charged by the other of them and in case of difference between the Rhondda Company and the Trustees as to such charges the same shall be settled by arbitration:
- (13) The Trustees shall not let any frontage or land adjacent to frontage to the new dock and they shall effectually prevent any company firm or person sub-letting any such frontage or land to any other railway company on more favourable terms than those made with the Rhondda Company and the Trustees shall not levy or charge in respect of vessels or goods using or loaded or unloaded at the quays included in any lease granted in pursuance of this agreement any higher dues or rates than they shall for the time being charge or levy in respect of similar vessels or goods on any other portion of the new dock:
- (14) Nothing in the two preceding clauses shall affect or prejudice the rights and privileges of Gertrude Barbara Rich Tennant and her tenants licencees and traders under an agreement to be scheduled to the intended Act or any lease to be granted thereunder:
- (15) The Rhondda Company shall not assign underlet or part with the possession of the said frontage jetties and land coloured pink or any part thereof respectively without the consent in writing of the Trustees unless such consent shall be arbitrarily or unreasonably withheld. And it is hereby expressly agreed that such consent as aforesaid shall not be withheld to an assignment or under-lease of the full benefit of the lease to any company corporation body or person or persons to or in whom the undertaking of the Rhondda Company shall by the authority of Parliament or otherwise be transferred or become vested:
- (16) All usual and necessary clauses to be inserted in the lease to carry out the arrangements agreed to:

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(17) All differences (if any) which shall arise between the Trustees and the Rhondda Company with respect to the lease or any of the subject matters thereof or otherwise relating thereto shall be referred to arbitration under and in accordance with the Arbitration Act 1889.

11. Protective clauses to be inserted in the Bill with regard to interference with or with access to the Rhondda Company's railways works and lands.

12. It shall not be obligatory upon the Trustees to construct any of the new works authorised by the Bill and the Rhondda Company shall not be entitled to recover any damages against the Trustees by reason of their failing to construct or complete the new dock or any part thereof and works or any of them but if the new dock or part thereof as aforesaid is not opened within six years from the time limited for the completion thereof the Rhondda Company shall be at liberty to move any buildings or work which they may have erected or made in or upon the said 475 feet frontage and land coloured pink.

13. The connection of the Rhondda Company's line with the English Crown Spelter Works shall be preserved and shall not except with the consent of the Rhondda Company be used by the Trustees or any company or persons authorised by them for conveyance of traffic to or from those works.

14. All traffic brought by the Rhondda Railway for shipment at hoists in the hands of the Trustees at the new dock to be given by the Rhondda Company equal dispatch to traffic destined for hoists of the Rhondda Company.

15. All differences (if any) which shall arise between the Trustees the Great Western Company and the Rhondda Company or any of them touching any of the matters aforesaid or otherwise relating thereto shall be referred to arbitration and the arbitration shall be as nearly as can be in accordance with the Arbitration Act 1889 or any statutory modification thereof.

16. This agreement is made subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in this agreement it shall be competent to either of the parties hereto to withdraw the same.

IN WITNESS whereof the parties hereto have hereunto set their respective common seals the 13th day of June one thousand nine hundred and one.

The common seal of the Swansea Harbour Trustees was
hereunto affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

L.S.

The common seal of the Great Western Company was
hereunto affixed in the presence of

G. K. MILLS

Secy.

L.S.

The common seal of the Rhondda Company was hereunto
affixed in the presence of

H. S. LUDLOW

Secretary.

L.S.

THE NINTH SCHEDULE.

AN AGREEMENT made the thirteenth day of July one thousand nine hundred and one between the most noble HENRY ADELBERT WELLINGTON FITZ-ROY (ninth) DUKE OF BEAUFORT (hereinafter called "the Duke" which expression shall where the context admits include his heirs and assigns) of the one part and THE SWANSEA HARBOUR TRUSTEES (hereinafter called "the Trustees" which expression shall where the context admits include their successors and assigns) of the other part.

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WHEREAS the Trustees are promoting a Bill (hereinafter referred to as "the Bill") in Parliament entitled the Swansea Harbour Act 1901 to authorise the Trustees to make and maintain certain docks and works as therein set forth :

AND WHEREAS the said docks and works will be constructed in part on certain lands and foreshore hereinafter mentioned of which the Duke claims to be seized in fee simple in possession in right of his seignior of Gower and his seignior or manor of Kilvey in the county of Glamorgan or otherwise :

AND WHEREAS the Duke has agreed not to oppose the passing of the Bill upon the Trustees entering into the agreement hereinafter contained Now THESE PRESENTS witness that in pursuance of the said agreement and in consideration of the premises the Trustees for themselves their successors and assigns hereby covenant with the Duke his heirs and assigns and the said Duke for himself his heirs and assigns hereby covenants with the Trustees as follows :—

1. If the sanction of Parliament shall be obtained in the present session of Parliament to the passing of the Bill and the construction of the said docks and works the Duke shall sell to the Trustees and the Trustees shall purchase from the Duke all such estate right title royalty property and interest as were comprised in the deed of the first August one thousand eight hundred and forty-five hereinafter mentioned or as are now vested in the Duke or his mortgagees or incumbrancers in right of the seignior of Gower and the seignior or manor of Kilvey or otherwise howsoever or as he or they can by any means convey in to over and in respect of the lands foreshore and waters part of the River Tawe or the bed and soil thereof coloured pink on the plan signed by F. H. Glynn Price as agent for and on behalf of the Duke and by Augustus Oswald Schenk as agent for and on behalf of the Trustees and in to over and in respect of the lands foreshore and waters situated

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between the red line marked A B on the said plan on the west and the red line marked C D on the said plan on the east and bounded on the north by the line of high-water mark from the said line C D to the said line A B and extending southward between the said lines A B and C D or any prolongations thereof in a straight line without limit so as to include the land and waters forming part of Swansea Bay as well above as below low-water mark And also all such (if any) estate right title royalty property and interest as are now vested in the Duke or his mortgagees or incumbrancers in the lands situate between the said line of high-water mark on the south and the Tennant Canal from the point C as far as the lock leading from the said canal into the Prince of Wales Dock and the southern quay wall of the said dock from the said lock to the point A on the north and the said line C D on the east and the said line A B on the west exclusive of and reserving to the Duke his heirs and assigns the mines and minerals under the said premises (other than such mines and minerals as it shall be necessary or convenient to dig or carry away or use in the construction of the said docks and works) in the same manner and with all the like rights and powers in respect of mines and minerals under or near the premises hereby agreed to be sold (other than as aforesaid) as the Duke his heirs or assigns would have had and been entitled to under the Railways Clauses Act 1845 if such premises had been lands taken by compulsion by a railway company and if the whole of the lands so taken had been the site of a railway for the sum of eight thousand pounds and the Duke will (except as hereinafter in clause seven provided) accept the same as full compensation and satisfaction for the said premises hereby agreed to be sold and for all loss damage or inconvenience whether temporary permanent or recurring occasioned by severing the same premises from the Duke's other property or otherwise injuriously affecting such other property in the exercise of the powers of the Bill and for all accommodation works and things which might otherwise be required to be made or done under any Act of Parliament or otherwise for the benefit or accommodation now or at any future time of the adjoining property of the Duke.

2. The said purchase and compensation moneys shall be paid and the purchase completed at the office Norfolk House Norfolk Street Strand London of Messrs. Williams & James the solicitors of the Duke within three years from the passing of the Bill and if from any cause whatever the same shall not then be paid the Trustees shall pay to the Duke interest for the same at the rate of four per centum per annum from that date until payment.

3. The abstract of title is to commence with the said deed of first August one thousand eight hundred and forty-five which is based on a disentailing deed therein mentioned dated the twenty-eighth day of June one thousand eight hundred and forty-five and no objection is to be made by reason of such deed being expressed merely in general terms i.e. to be a settlement of the hereditaments in Glamorganshire comprised in the said disentailing deed without further specification and the Trustees are not to require the said disentailing deed to be abstracted or produced but the Trustees are to assume

without further evidence that the said deed of first August one thousand eight hundred and forty-five comprised the fee simple of the seignior of Gower and the seignior or manor of Kilvey and also that the fee simple of the foreshore and hereditaments hereby agreed to be sold in fact forms part of or is held in right of the said seigniories or manor.

4. The Trustees are within twenty-eight days after delivery of the abstract to send to the said solicitors of the Duke a statement in writing of all their objections and requisitions (if any) to or on the title or evidence of title or the abstract or this agreement and subject thereto the title is to be deemed accepted and an answer to any objection or requisition is to be replied to in writing within twenty-one days after the delivery thereof and if not so replied to is to be considered satisfactory and time is to be deemed of the essence of this clause.

5. The conveyance to the Trustees (a duplicate whereof shall if required by the Duke be at his expense prepared and executed) is to be prepared by the Trustees and the engrossment of such conveyance (but not the duplicate) is to be delivered at the office of the said solicitors of the Duke at least fourteen days before the day for completion for execution by the Duke and all other necessary parties and the draft of such conveyance for perusal and approval on behalf of the Duke and all other necessary parties is to be left at the said office at least fourteen days before delivery of the engrossment.

6. The Trustees shall be at liberty to take possession of the premises at any time before completion of the purchase on giving to the said solicitors of the Duke fourteen days' notice in writing under the hand of the solicitor of the Trustees and if required depositing the said purchase-money in the joint names of the Trustees or their nominee and the Duke in the Capital and Counties Bank Limited Swansea where the same shall remain at the risk of the Trustees until the purchase shall be completed when the same shall be paid to the Duke or other the parties entitled thereto the Trustees being entitled to any interest allowed by the said bank and such entry shall not be an acceptance of the title.

7. The Trustees shall pay to the Duke all the costs charges and expenses incurred by him in respect of the deducing and verifying the title of the Duke and all other necessary parties so far as the Trustees shall require the same to be deduced or verified and of the assurance to the Trustees but not of the duplicate thereof.

8. In consideration of the foregoing articles the Duke will not directly or indirectly oppose the Bill.

9. This agreement is made subject to such alterations as Parliament may think fit to make therein and also to the Bill becoming law in the present session of Parliament with the addition of a clause confirming this agreement as aforesaid and if not so confirmed shall be void In the event of Parliament making any material alteration in this agreement it shall be competent for either party hereto to withdraw from the same.

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IN WITNESS whereof the Duke has hereunto set his hand and seal and the Trustees have caused their common seal to be hereunto affixed the day and year first above written.

Signed sealed and delivered by the above-named Duke of Beaufort in the presence of

H. PERCY TALBOT

Clerk to Mr. Romer Williams

Norfolk House

Thames Embankment W.C.

Solicitor.

BEAUFORT.

L.S.

The common seal of the Swansea Harbour Trustees was hereunto affixed in the presence of

TALFOURD STRICK

Clerk to the Trustees.

L.S.

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T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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